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GOVERNOR

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SECRETARY FOR
ENVIRONMENTAL PROTECTION

Santa Ana Regional Water Quality Control Board

July 3, 2018

Jay Rao, Environmental Engineer
Dos Cuadras Offshore Resources, LLC
290 Maple Court, Suite 290
Ventura, CA 93003

ADOPTION OF THE RENEWAL OF WASTE DISCHARGE REQUIREMENTS AND NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES NO. CA0105996) PERMIT FOR DOS CUADRAS OFFSHORE RESOURCES (DCOR), LLC, PATFORM EVA, ORANGE COUNTY, ORDER NO. R8-2018-0076

Dear Mr. Rao:

The above, mentioned Order was adopted by the Regional Board at its regular Board meeting on June 15, 2018.

Any questions regarding this correspondence, you may contact Najah Amin at 951-320-6362 or by email najah.amin@waterboards.ca.gov, or Milasol Gaslan at 951-782-4419 or by email milasol.gaslan@waterboards.ca.gov.

Sincerely,

A handwritten signature in black ink, appearing to read "Felipa Carrillo".

Felipa Carrillo
Executive Assistant

Encl.: Signed Board Order No. R8-2018-0076

California Regional Water Quality Control Board

Santa Ana Region

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ORDER NO. R8-2018-0076
NPDES NO. CA 0105996

WASTE DISCHARGE REQUIREMENTS FOR DOS CUADRAS OFFSHORE RESOURCES, LLC PLATFORM EVA ORANGE COUNTY

The following Discharger is subject to waste discharge requirements as set forth in this Order:

Table 1. Discharge Information

Discharger	Dos Cuadras Offshore Resources, LLC
Facility	Platform Eva
Facility Location	2.5 Miles offshore of the City of Huntington Beach, Orange County
The U.S. Environmental Protection Agency (USEPA) and the Regional Water Quality Control Board have classified this discharge as a minor discharge.	

The discharge by Dos Cuadras Offshore Resources, LLC from the discharge points identified below is subject to waste discharge requirements as set forth in this Order:

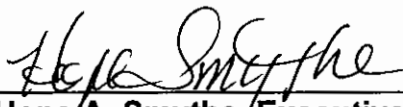
Table 2. Discharge Locations

Discharge Point	Effluent Description	Discharge Point Latitude (N)	Discharge Point Longitude (W)	Receiving Water
001	Sanitary Wastewater	33° 39' 42.346"	118° 3' 39.816"	Offshore Zone of the Pacific Ocean
002	Produced Water/Deck Drainage	33° 39' 42.530"	118° 3' 39.380"	Offshore Zone of the Pacific Ocean
003	Deck Drainage	33° 39' 42.973"	118° 3' 39.520"	Offshore Zone of the Pacific Ocean

Table 3. Administrative Information

This Order was adopted by the Regional Water Quality Control Board on:	June 15, 2018
This Order shall become effective on:	July 1, 2018
This Order shall expire on:	July 1, 2023
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDRs in accordance with title 23, California Code of Regulations, and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	January 2, 2023
The U.S. Environmental Protection Agency (U.S. EPA) and the California Regional Water Quality Control Board, Santa Ana Region have classified this discharge as follows:	Minor

I, Hope A. Smythe, Executive Officer, do hereby certify that this Order with all the attachments is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Santa Ana Region, on June 15, 2018.



Hope A. Smythe, Executive Officer

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I. FACILITY INFORMATION

Information describing the Platform Eva (Facility) is summarized in Table 1 and in sections I and II of the Fact Sheet (Attachment F). Section I of the Fact Sheet also includes information regarding the Facility's permit application.

II. FINDINGS

The California Regional Water Quality Control Board, Santa Ana Region (hereinafter Regional Water Board), finds:

- A. Legal Authorities.** This Order serves as Waste Discharge Requirements (WDRs) pursuant to Article 4, Chapter 4, division 7 of the California Water Code CWC (commencing with Section 13260). This Order is also issued pursuant to Section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. Environmental Protection Agency (USEPA) and Chapter 5.5, division 7 of the California Water Code (commencing with Section 13370). It shall also serve as a National Pollutant Discharge Elimination System (NPDES) permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 2 subject to the WDRs in this Order.
- B. Background and Rationale for Requirements.** The Regional Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available environmental information. The Fact Sheet (Attachment F), which contains background information and rationale for Order requirements, is hereby incorporated into this Order and constitutes part of the Findings for this Order. Attachments A through G are also incorporated into this Order.
- C. Provisions and Requirements Implementing State Law.** The provisions/requirements in subsections IV.A. and VI.C. of this Order are included to implement state law only. These provisions/requirements are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- D. Notification of Interested Parties.** The Regional Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.
- E. Consideration of Public Comment.** The Regional Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED, that Order No. R8-2012-0022 is rescinded upon the effective date of this Order except for enforcement purposes, and, in order to meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder, and the provisions of the federal Clean Water Act (CWA) and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order. This action in no way prevents the Regional Water Board from taking enforcement action for violations of the previous Order.

III. DISCHARGE PROHIBITIONS

- A. The discharge of wastewater at a location or in a manner different from those described in this Order is prohibited.
- B. The discharge of oil or any residuary product of petroleum to waters of the State, except in accordance with waste discharge requirements or other provisions of Division 7 of the CWC, is prohibited.
- C. The discharge of untreated produced water to the Pacific Ocean is prohibited.
- D. The discharge of any radiological, chemical, or biological warfare agent or high-level radioactive waste into the ocean is prohibited.
- E. The discharge of waste to Areas of Special Biological Significance¹ is prohibited.
- F. The discharge of wastewater shall not cause or threaten to cause pollution or nuisance as defined in the California Water Code.
- G. The discharge of any substances in concentrations toxic to animal or plant life is prohibited.
- H. The discharge of wastes shall not contain any constituent in concentration that will render the ocean waters unsuitable for the beneficial uses stated above.
- I. The discharge of drilling mud, cuttings, and cement slurry into the Ocean within three miles of the shore is prohibited. All waste cuttings, mud, cement slurry, rags and other wastes shall be transferred ashore for disposal at a waste management unit approved by the Executive Officer of the Board.
- J. The discharge of free oil from deck drainage is prohibited.
- K. The by-passing of untreated wastes containing concentrations of pollutants in excess of those in Table 1 or Table 2 of the California Ocean Plan is prohibited.

¹ See Attachment A - Definitions.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharges to DP 001

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 001, with compliance measured at Monitoring Location M-001 as described in the attached Monitoring and Reporting Program (Attachment E):

1. The discharge of wastes shall not exceed a monthly average Total Suspended Solids (TSS) concentration of 60 mg/l. Alternatively, the discharge shall remove at least 75% of the TSS (as a monthly average) from the influent stream to the sanitary waste treatment unit before discharging wastewater to the ocean.
2. The chlorine residual concentration in the wastewater discharged at DP 001 shall be maintained between 1 mg/l and 8.8 mg/l all the times.
3. The waste discharged at DP 001 must be essentially free of:
 - a. Material that is floatable or will become floatable upon discharge.
 - b. Settleable material or substances that may form sediments, which will degrade benthic communities or other aquatic life.
 - c. Substances that will accumulate to toxic levels in marine waters, sediments, or biota.
 - d. Substances that significantly decrease the natural light to benthic communities and other marine life.
 - e. Materials that result in aesthetically undesirable discoloration of the ocean surface.

B. Discharges to DP 002 and DP 003

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 002, with compliance measured at Monitoring Location M-002 as described in the attached Monitoring and Reporting Program (Attachment E):

1. The discharge of produced water and/or deck drainage including stormwater at DP 002 shall not exceed oil and grease limits as follows:

Table 4. Oil and Grease Effluent Limitation

Parameter	Daily Maximum mg/L	Monthly Average mg/L
Oil and Grease	42	25

2. The discharge of produced wastewater and deck drainage at DP 002 is prohibited, except in the event of an emergency, such as an injection system failure.
3. The discharge of deck drainage from DP 003 shall be limited to high intensity or extended storm events and when the wastewater flow exceeds holding tank capacity.

C. Stormwater Discharge Specifications

See section B1 and B3 above and Construction, Operation and Maintenance Specifications in Section VI.C.4.f.

V. RECEIVING WATER LIMITATIONS – Not Applicable

VI. PROVISIONS

A. Standard Provisions

1. **Standard Provisions.** The Discharger shall comply with all *State and Federal Standard Provisions* included in Attachment D of this Order.
2. **Regional Water Board Standard Provisions.** The Discharger shall comply with the following provisions:
 - a. Failure to comply with provisions or requirements of this Order, or violation of other applicable laws or regulations governing discharges from this facility, may subject the Discharger to administrative or civil liabilities, criminal penalties, and/or other enforcement remedies to ensure compliance. Additionally, certain violations may subject the Discharger to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities.
 - b. In the event the Discharger does not comply or will be unable to comply for any reason, with any prohibition, discharge limitations (e.g., maximum daily effluent limitation), or receiving water limitation of this Order, the Discharger shall notify the Regional Water Board by telephone (951) 782-4130 within 24 hours of having knowledge of such noncompliance, and shall confirm this notification in writing within five days, unless the Regional Board waives confirmation. The written notification shall state the nature, time, duration, and cause of noncompliance, and shall describe the measures being taken to remedy the current noncompliance and prevent recurrence, including, where applicable, a schedule of implementation. Other noncompliance requires written notification as above at the time of the normal monitoring report.

- c. Neither the treatment nor the discharge of pollutants shall create a pollution, contamination, or nuisance as defined by Section 13050 of the CWC.
- d. The Discharger shall take all reasonable steps to minimize or correct any adverse impact on the environment resulting from noncompliance with this Order, including such accelerated or additional monitoring as may be necessary to determine the nature and impact of the noncomplying discharge.
- e. This Order may be modified, revoked and reissued, or terminated for cause including, but not limited to, the following.
 - 1) Violation of any terms or conditions of this Order;
 - 2) Obtaining this Order by misrepresentation or failure to disclose fully all relevant facts, or;
 - 3) A change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge.
- f. In addition to any other grounds specified herein, this permit may be modified or revoked at any time if, on the basis of any data, the Regional Water Board determines that continued discharges may cause unreasonable degradation of the marine environment.
- g. If an effluent standard or discharge prohibition (including any schedule of compliance specified in such effluent standard or prohibition) is established under Section 307 (a) of the Clean Water Act for a toxic pollutant which is present in the discharge, and such standard or prohibition is more stringent than any limitation for that pollutant in this Order, this Order may be modified or revoked and reissued to conform to the effluent standard or discharge prohibition.
- h. This discharge shall not cause a violation of any applicable water quality standard for receiving waters adopted by the Regional Water Board or the State Board as required by the CWA and regulations adopted thereunder. If more stringent applicable water quality standards are promulgated or approved pursuant to Section 303 of the CWA or amendments thereto, the Regional Water Board may modify this Order in accordance with the more stringent standards.
- i. If only one sample is collected during the time period associated with an effluent limitation (e.g., 30-day average or 6-month median), the single measurement shall be used to determine compliance with the effluent limitation for the entire time period.
- j. All analytical data shall be reported uncensored with detection limits and

quantitation limits identified. For any effluent limitation, compliance shall be determined using appropriate statistical methods to evaluate multiple samples. Sufficient sampling and analysis shall be conducted to determine compliance.

- k. The Discharger shall file with the Regional Water Board a Report of Waste Discharge at least 180 days before making any material change in the character, location, or volume of the discharge. A material change includes, but is not limited to, the following:
 - 1) Adding a major industrial waste discharge to a discharge of essentially domestic sewage, or adding a new process or product by an industrial facility resulting in a change in the character of the waste.
 - 2) Significantly changing the disposal method or location, such as changing the disposal to another drainage area or water body.
 - 3) Significantly changing the method of treatment.
 - 4) Increasing the treatment plant design capacity beyond that specified in this Order.
- l. The provisions of this Order are severable, and if any provisions of this Order, or the application of any provision of this Order to any circumstances, is held invalid, the application of such provision to other circumstances, and the remainder of this Order, shall not be affected thereby.

B. Monitoring and Reporting Program Requirements

The Discharger shall comply with the Monitoring and Reporting Program, and future revisions thereto, in Attachment E of this Order. This monitoring and reporting program may be modified by the Executive Officer at any time during the term of this Order, and may include an increase in the number of parameters to be monitored, the frequency of the monitoring or the number and size of samples to be collected. Any increase in the number of parameters to be monitored, the frequency of the monitoring or the number and size of samples to be collected may be reduced back to the levels specified in the original monitoring and reporting program at the discretion of the Executive Officer.

C. Special Provisions

1. Reopener Provisions

- a. This Order will be reopened to address any changes in State or federal plans, policies or regulations that would affect the quality requirements for the discharges.
- b. This Order may be reopened to include effluent limitations for pollutants determined to be present in the discharge in concentrations that pose a reasonable potential to cause or contribute to an excursion above a California Ocean Plan (Ocean Plan) Table 1 water quality objective.
- c. This Order may be reopened and modified in accordance with the requirements set forth at 40 CFR 122 and 124, to include the appropriate conditions or limits to address demonstrated effluent toxicity based on newly available information, or to implement any EPA-approved new State water quality standards applicable to effluent toxicity.
- d. This Order may be reopened for modification, or revocation and reissuance, as a result of the detection of a reportable priority pollutant generated by special conditions included in this Order. These special conditions may include, but are not limited to, fish tissue sampling, whole effluent toxicity, monitoring requirements on internal waste stream(s), and monitoring for surrogate parameters. Additional requirements may be included in this Order as a result of the special condition monitoring data.

2. Special Studies, Technical Reports and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

- i. The Discharger shall conduct acute toxicity monitoring of discharges as specified in the MRP (Attachment E).
- ii. Within 60 days of the effective date of this Order, the Discharger shall develop an Initial Investigation Toxicity Reduction Evaluation (IITRE) work

plan that describes the steps the Discharger intends to follow if required Special Provision VI.C.2.a.(d), below. The work plan shall include at a minimum:

(a) A description of the investigation and evaluation techniques that will be used to identify potential causes/sources of the exceedance, effluent variability, and/or efficiency of the treatment system in removing toxic substances. This shall include a description of an accelerated acute toxicity testing program.

(b) A description of the methods to be used for investigating and maximizing in-house treatment efficiency and good housekeeping practices. in-house treatment efficiency and good housekeeping practices.

(c) A description of the evaluation process to be used to determine if implementation of a more detailed TRE/TIE is necessary.

(d) The Discharger shall implement the IITRE work plan whenever the results of acute toxicity tests of the effluent exceed any single test value of 0.3 TUa for survival endpoint.

(e) The Discharger shall update, as necessary, its detailed Toxicity Reduction Evaluation and Toxicity Identification Evaluation (TRE/TIE) work plan that shall describe the steps the Discharger intends to follow if the implemented IITRE fails to identify the cause of, or rectify, the toxicity.

(f) The Discharger shall use as guidance, at a minimum, EPA manuals EPA/600/2-88/070 (industrial), EPA/600/4-89-001A (municipal), EPA/600/6-91/005F (Phase I), EPA/600/R-92/080 (Phase II), and EPA-600/R-92/081 (Phase III) to identify the cause(s) of toxicity. If during the life of this Order the aforementioned EPA manuals are revised or updated, the revised/updated manuals may also be used as guidance. The detailed TRE/TIE work plan shall include:

(1) Further actions to investigate and identify the cause of toxicity;

(2) Actions the Discharger will take to mitigate the impact of the discharge and to prevent the recurrence of toxicity; and

(3) A schedule for these actions.

(g) The Discharger shall implement the TRE/TIE work plan if the IITRE fails to identify the cause of, or rectify, the toxicity, or if in the opinion of the Executive Officer the IITRE does not adequately address an identified toxicity problem.

(h) The Discharger shall assure that adequate resources are available to implement the required TRE/TIE.

3. Best Management Practices and Pollution Prevention – Not Applicable.

4. Construction, Operation and Maintenance Specifications

The Discharger shall develop an "Operation and Maintenance Manual (O&M Manual)" for all treatment and storage systems necessary to maintain compliance with the specifications of this Order. If an O&M Manual has been developed, the Discharger shall update it as necessary to conform with latest plant changes and requirements. The O&M Manual shall be readily available to operating personnel onsite. The O&M Manual shall include the following:

- a. Detailed description of safe and effective operation and maintenance of treatment processes, process control instrumentation and equipment.
- b. Description of laboratory and quality assurance procedures.
- c. Process and equipment inspection and maintenance schedules,
- d. Description of safeguards to assure that, should there be reduction, loss, or failure of electric power, the Discharger will be able to comply with the terms and conditions of this Order.
- e. Description of preventive (fail-safe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. These plans shall identify the possible sources (such as loading and storage areas, power outage, waste treatment unit failure, process equipment failure, tank and piping failure) of accidental discharges, untreated or partially treated waste bypass, and polluted drainage.
- f. A rain event action plan (REAP) that describes actions to be implemented prior to a predicted rainfall intensity of concern and during extended back to back rain event to avoid or minimize discharge of pollutants by maximizing deck drainage holding tank capacity and minimizing pollutants that will come in contact with storm water. The discharger shall ensure adequate materials, staff, and time to Implement the REAP. The REAP shall include but not be limited to the following:
 - i. Implemented during a likely precipitation event that is forecast to have a 50% or greater probability² of producing precipitation in the project area of 1 inch or greater or .5 inch or greater back to back storms.

² The National Oceanic and Atmospheric Administration (NOAA) defines the probability of precipitation (PoP) as the likelihood of occurrence (expressed as a percent) of a measurable amount (0.01 inch or more) of liquid precipitation (or the water equivalent of frozen precipitation) during a specified period of time at any given point in the forecast area.) (<https://www.weather.gov/lot/#>)

- ii. Designed such that when implemented would minimize exposure of processes, equipment, materials and wastes at the platform within 48 hours of any likely precipitation event specified in item i above.
- iii. Requires inspection of drainage areas to identify any spills, leaks, or uncontrolled pollutant sources that may contact or be carried by storm water. If needed, the discharger shall implement appropriate corrective actions.
- iv. Specifies inspection of the deck drainage holding tank to detect leaks and evaluate deck drainage holding capacity. The discharger shall implement measures to maximize holding storage capacity.
- v. Requires pre- rain event inspection of stored or contained deck drainage for the presence or absence of floating and suspended materials, a sheen on the surface, discolorations, turbidity, odors, and source(s) of any observed pollutants. The discharger shall properly dispose of polluted deck drainage and cleanout the holding tank as necessary prior to the anticipated precipitation.
- vi. Requires daily visual inspection of discharge from DP 003 during period of extended precipitation for the presence or absence of floating and suspended materials, a sheen on the surface, discolorations, turbidity, odors, and source(s) of any observed pollutants. The discharger shall implement appropriate corrective actions.
- vii. Includes inspection procedures and instructions, location maps, forms, and checklists.
- viii. Requires maintenance of on-site records and annual reporting of all visual observations (inspections), personnel performing the observations, observation dates, weather conditions, locations observed, and corrective actions taken in response to the observations.

5. Other Special Provisions – Not Applicable

6. Compliance Schedules – Not Applicable

VII. COMPLIANCE DETERMINATION

Compliance with the effluent limitations contained in Section IV. of this Order will be determined as specified below:

A. General.

Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Regional and State Water Boards, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported reporting level (RL).

B. Multiple Sample Data.

When determining compliance with a Monthly Average or Daily Maximum Effluent Limitation for priority pollutants and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND). In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

C. Monthly Average Effluent Limitation.

If the average (or when applicable, the median determined by subsection B above for multiple sample data) of daily discharges over a calendar month exceeds the monthly average limit for a given parameter, this will represent a single violation, though the Discharger will be considered out of compliance for each day of that month for that parameter (e.g., resulting in 31 days of non-compliance in a 31-day month). If only a single sample is taken during the calendar month and the analytical result for that sample exceeds the monthly average effluent limitation, the Discharger will be considered out of compliance for that calendar month. The Discharger will only be considered out of compliance for days when the discharge occurs. For any one calendar month during which no sample (daily discharge) is taken, no compliance determination can be made for that calendar month.

D. Daily Maximum Effluent Limitation.

The daily maximum shall apply to flow weighted 24-hour composite samples.

E. Instantaneous Minimum Effluent Limitation.

If the analytical result of a single grab sample is lower than the instantaneous minimum effluent limitation for a parameter, the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples taken within a calendar day that both are lower than the instantaneous minimum effluent limitation would result in two instances of non-compliance with the instantaneous minimum effluent limitation).

F. Instantaneous Maximum Effluent Limitation.

If the analytical result of a single grab sample is higher than the instantaneous maximum effluent limitation for a parameter, the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples taken within a calendar day that both exceed the instantaneous maximum effluent limitation would result in two instances of non-compliance with the instantaneous maximum effluent limitation).

G. Six-month Median Effluent Limitation.

If the median of daily discharges over any 180-day period exceeds the six-month median effluent concentration limitation for a given parameter, the Discharger will be considered out of compliance for each day of that 180-day period for that parameter. The next assessment of compliance will occur after the next sample is taken. If only a single sample is taken during a given 180-day period and the analytical result for that sample exceeds the six-month median, the Discharger will be considered out of compliance for the 180-day period. For any 180-period during which no sample is taken, no compliance determination can be made for the six-month median limitation.

Similarly, compliance with the six-month median mass emissions limit shall be determined by comparing the calculated mass limit with calculated mass discharges. If mass discharges exceed the allowed mass discharges, the Discharger is not in compliance. The calculated mass discharges shall be determined by using the same equation in calculating the mass emission limit and using the allowable six-month median effluent concentration and the observed flow rate in millions of gallons per day.

H. Compliance Determination

Compliance determinations shall be based on available analyses for the time interval associated with the effluent limitation. If only one sample is collected during the time period associated with the water quality objective (e.g., 30-day average or 6-month median), the single measurement shall be used to determine compliance with the effluent limitation for the entire time period.

ATTACHMENT A – DEFINITIONS

Acute Toxicity:

- a. Acute Toxicity (TUa)
Expressed in Toxic Units Acute (TUa)

$$TUa = \frac{100}{96\text{-hr LC } 50\%}$$

- b. Lethal Concentration 50% (LC 50)
LC 50 (percent waste giving 50% survival of test organisms) shall be determined by static or continuous flow bioassay techniques using standard marine test species as specified in Appendix III, Chapter II. If specific identifiable substances in wastewater can be demonstrated by the discharger as being rapidly rendered harmless upon discharge to the marine environment, but not as a result of dilution, the LC 50 may be determined after the test samples are adjusted to remove the influence of those substances.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TUa = \frac{\log (100 - S)}{1.7}$$

where:

S = percentage survival in 100% waste. If S > 99, TUa shall be reported as zero.

Areas of Special Biological Significance (ASBS): Those areas designated by the State Water Board as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable. All Areas of Special Biological Significance are also classified as a subset of STATE WATER QUALITY PROTECTION AREAS.

Average Monthly Effluent Limitation (AMEL): The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Chlordane: Shall mean the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

Chronic Toxicity: This parameter shall be used to measure the acceptability of waters for supporting a healthy marine biota until improved methods are developed to evaluate biological response.

a. Chronic Toxicity (TUc)

Expressed as Toxic Units Chronic (TUc)

$$TUc = \frac{100}{NOEL}$$

b. No Observed Effect Level (NOEL)

The NOEL is expressed as the maximum percent effluent or receiving water that causes no observable effect on a test organism, as determined by the result of a critical life stage toxicity test listed in Appendix II.

Composite Sample. A composite sample is a combination of 24 aliquots of at least 100 mL each collected hourly over 24-hour period. Each individual aliquot must consist of 4 samples taken at 15-minute intervals. The composite must be flow proportional; either the time interval between each aliquot or the volume of each aliquot must be proportional to either the stream flow at the time of sampling or the total stream flow since the collection of the previous aliquot. Aliquots may be collected manually or automatically.

Daily Discharge: Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

DDT shall mean the sum of 4,4'DDT, 2,4'DDT, 4,4'DDE, 2,4'DDE, 4,4'DDD, and 2,4'DDD.

Deck drainage: Any waste resulting from deck washings, spillage, rainwater, and runoff from gutters and drains including drip pans and work areas within facilities subject to Subpart A of 40 CFR 435

Degrade: Degradation shall be determined by comparison of the waste field and reference site(s) for characteristic species diversity, population density, contamination, growth

anomalies, debility, or supplanting of normal species by undesirable plant and animal species. Degradation occurs if there are significant differences in any of three major biotic groups, namely, demersal fish, benthic invertebrates, or attached algae. Other groups may be evaluated where benthic species are not affected, or are not the only ones affected.

Detected, but Not Quantified (DNQ): Sample results less than the reported Minimum Level, but greater than or equal to the laboratory's MDL.

Dichlorobenzenes: Shall mean the sum of 1,2- and 1,3-dichlorobenzene.

Downstream Ocean Waters: Shall mean waters downstream with respect to ocean currents.

Endosulfan Shall mean the sum of endosulfan-alpha and -beta and endosulfan sulfate.

Grab Sample. A grab sample is an individual sample of at least 100 mLs collected at a randomly selected time over a period not exceeding 15 minutes.

Halomethanes Shall mean the sum of bromoform, bromomethane (methyl bromide) and chloromethane (methyl chloride).

HCH shall mean the sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

Initial Dilution is the process which results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge.

For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally.

For shallow water submerged discharges, surface discharges, and nonbuoyant discharges, characteristic of cooling water wastes and some individual discharges, turbulent mixing results primarily from the momentum of discharge. Initial dilution, in these cases, is considered to be completed when the momentum induced velocity of the discharge ceases to produce significant mixing of the waste, or the diluting plume reaches a fixed distance from the discharge to be specified by the Regional Board, whichever results in the lower estimate for initial dilution.

Instantaneous Maximum Effluent Limitation: the highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation: the lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Kelp Beds, for purposes of the bacteriological standards of this plan, are significant aggregations of marine algae of the genera Macrocystis and Nereocystis. Kelp beds include the total foliage canopy of Macrocystis and Nereocystis plants throughout the water column.

Mariculture is the culture of plants and animals in marine waters independent of any pollution source.

Material: (a) In common usage: (1) the substance or substances of which a thing is made or composed (2) substantial; (b) For purposes of the California Ocean Plan relating to waste disposal, dredging and the disposal of dredged material and fill, MATERIAL means matter of any kind or description which is subject to regulation as waste, or any material dredged from the navigable waters of the United States. See also, DREDGED MATERIAL.

Maximum Daily Effluent Limitation (MDEL): The highest allowable daily discharge of a pollutant . That shall apply to flow weighted 24-hour composite samples.

MDL (Method Detection Limit): The minimum concentration of a substance that can be reported with 99% confidence that the measured concentration is distinguishable from method blank results, , as defined in 40 CFR Part 136 Attachment B.

Minimum Level (ML): The concentrations at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method-specified sample weights, volumes and processing steps have been followed.

Natural Light: Reduction of natural light may be determined by the Regional Water Board by measurement of light transmissivity or total irradiance, or both, according to the monitoring needs of the Regional Water Board.

Not Detected (ND): Those sample results less than the laboratory's MDL.

Ocean Waters: The territorial marine waters of the State as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. If a discharge outside the territorial waters of the State could affect the quality of the waters of the State, the discharge may be regulated to assure no violation of the California Ocean Plan will occur in ocean waters.

PAHs (polynuclear aromatic hydrocarbons): The sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene, benzo[a]pyrene, chrysene, dibenzo[ah]anthracene, fluorene, indeno[1,2,3-cd]pyrene, phenanthrene and pyrene.

PCBs (polychlorinated biphenyls): The sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

Pollutant Minimization Program (PMP) means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling,

alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of Ocean Plan Table B pollutants through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Regional Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Reported Minimum Level: The reported ML(also known as the Reporting Level or RL) is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order including an additional factor if applicable as discussed herein. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Regional Water Board either from Appendix II of the Ocean Plan in accordance with section III.C.5.a. of the Ocean Plan or established in accordance with section III.C.5.b. of the Ocean Plan. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the reported ML.

Shellfish: Organisms identified by the California Department of Health Services as shellfish for public health purposes (i.e., mussels, clams and oysters).

Significant Difference: Defined as a statistically significant difference in the means of two distributions of sampling results at the 95 percent confidence level.

Six-month Median Effluent Limitation: The highest allowable moving median of all daily discharges for any 180-day period.

State Water Quality Protection Areas (SWQPAs): Non-terrestrial marine or estuarine areas designated to protect marine species or biological communities from an undesirable alteration in natural water quality. All AREAS OF SPECIAL BIOLOGICAL SIGNIFICANCE (ASBS) that were previously designated by the State Water Board in Resolutions 74-28, 74-32, and 75-61 are now also classified as a subset of State Water Quality Protection Areas and require special protections afforded by the Ocean Plan.

TCDD Equivalents shall mean the sum of the concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown in the table below.

Isomer Group	Toxicity Equivalence Factor
	1.0
2,3,7,8-tetra CDD	
2,3,7,8-penta CDD	0.5
2,3,7,8-hexa CDDs	0.1
2,3,7,8-hepta CDD	0.01
octa CDD	0.001
2,3,7,8 tetra CDF	0.1
1,2,3,7,8 penta CDF	0.05
2,3,4,7,8 penta CDF	0.5
2,3,7,8 hexa CDFs	0.1
2,3,7,8 hepta CDFs	0.01
octa CDF	0.001

Toxicity Reduction Evaluation (TRE) is a study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

Waste: As used in the California Ocean Plan, waste includes a Discharger's total discharge, of whatever origin, i.e., gross, not net, discharge.

Water Recycling: The treatment of wastewater to render it suitable for reuse, the transportation of treated wastewater to the place of use, and the actual use of treated wastewater for a direct beneficial use or controlled use that would not otherwise occur.

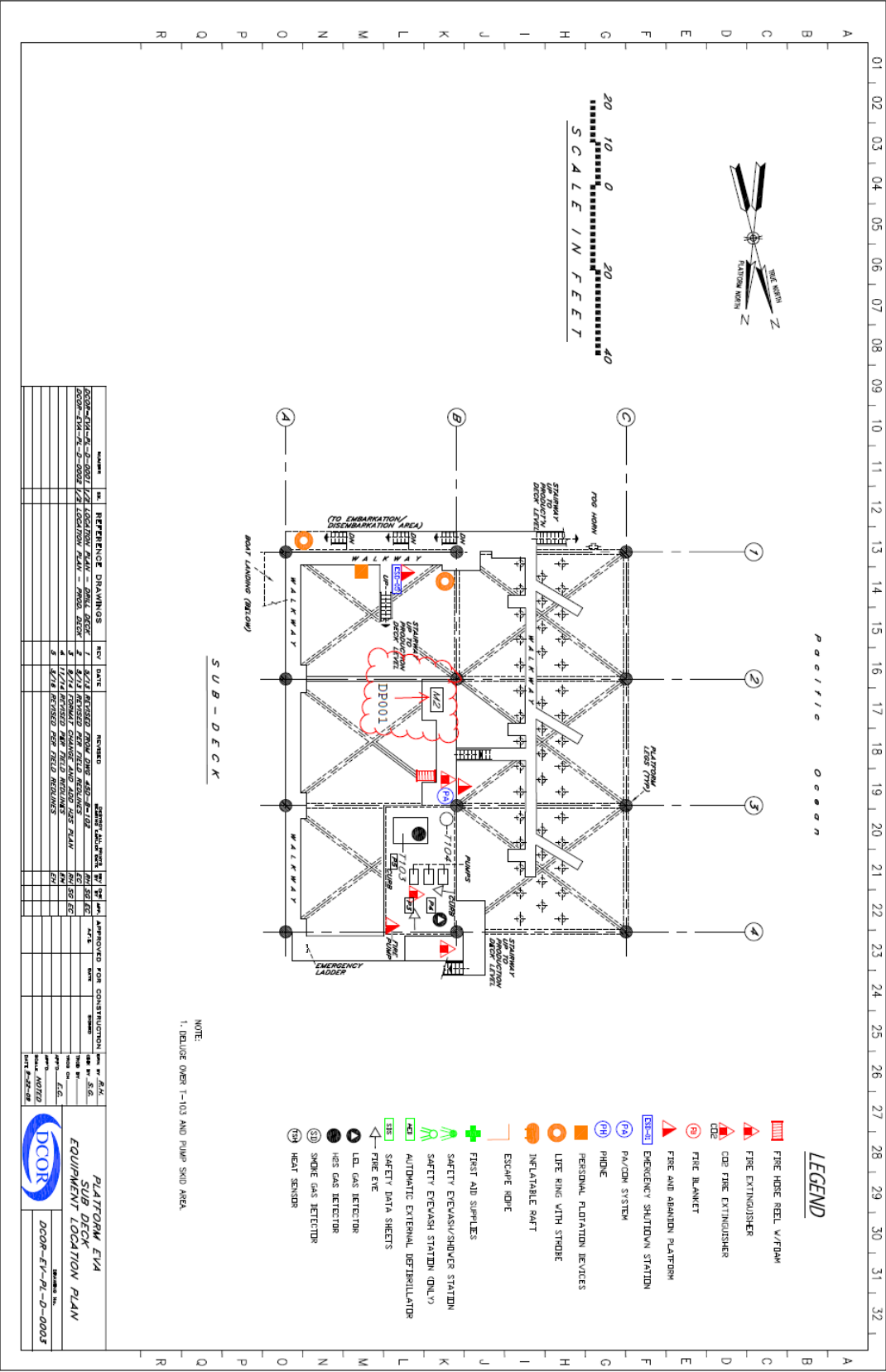
ATTACHMENT B – FACILITY LOCATION

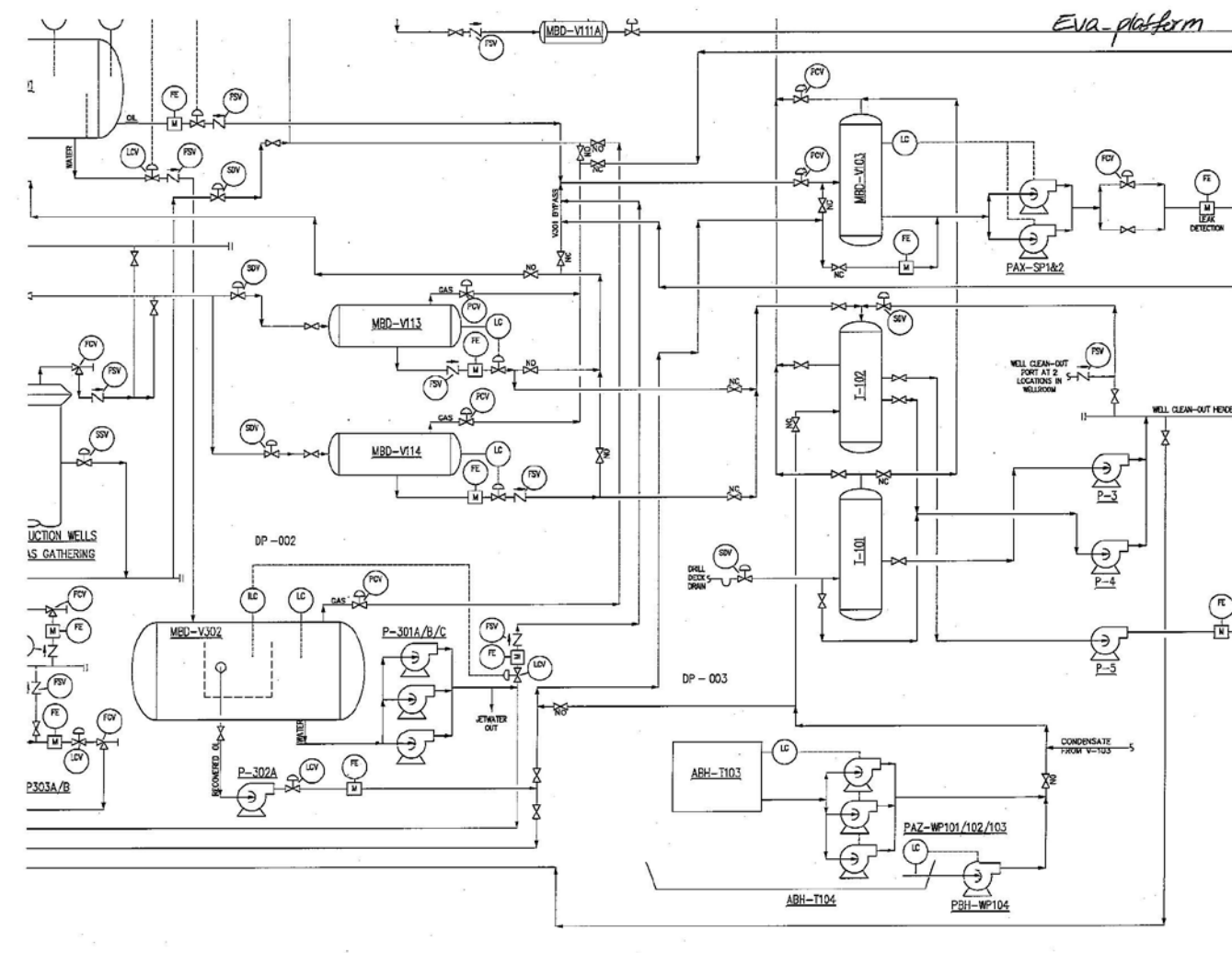


ATTACHMENT C - PHOTO OF PLATFORM EVA



Schematic Diagram:





ATTACHMENT D – STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all of the conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code (CWC) and is grounds for enforcement action; for permit termination, revocation and reissuance, or modification; denial of a permit renewal application or a combination thereof. [40 C.F.R. § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385].
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not been modified to incorporate the requirement [40 CFR §122.41(a)(1)].

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order [40 CFR §122.41(c)].

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment [40 CFR §122.41(d)].

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order [40 CFR §122.41(e)].

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges [40 CFR §122.41(g)].

2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of State or local law or regulations [40 CFR §122.5(c)].

F. Inspection and Entry

The Discharger shall allow the Regional Water Board, State Water Board, United States Environmental Protection Agency (U.S. EPA), and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to [33 U.S.C. § 1318(a)(4)(b); 40 C.F.R. § 122.41(i); Wat. Code, §§ 13267, 13383]:

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order [33 U.S.C. § 1318(a)(4)(b)(i); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383];
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order [33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383];
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order [33 U.S.C. § 1318(a)(4)(b)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, §§ 13267, 13383]; and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location [33 U.S.C. § 1318(a)(4)(b); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383].

G. Bypass

1. Definitions

- a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility [40 CFR §122.41(m)(1)(i)].
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production [40 CFR §122.41(m)(1)(ii)].
2. Bypass not exceeding limitations – The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below [40 CFR §122.41(m)(2)].

3. Prohibition of bypass – Bypass is prohibited, and the Regional Water Board may take enforcement action against a Discharger for bypass, unless [40 CFR §122.41(m)(4)(i)]:
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage [40 CFR §122.41(m)(4)(i)(A)];
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance [40 CFR §122.41(m)(4)(i)(B)]; and
 - c. The Discharger submitted notice to the Regional Water Board as required under Standard Provisions – Permit Compliance I.G.5 below [40 CFR §122.41(m)(4)(i)(C)].
4. The Regional Water Board may approve an anticipated bypass, after considering its adverse effects, if the Regional Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above [40 CFR §122.41(m)(4)(ii)].
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit a notice, if possible at least 10 days before the date of the bypass. The notice shall be sent to the Regional Water Board. As of December 21, 2020, a notice shall also be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127[40 CFR §122.41(m)(3)(i)].
 - b. Unanticipated bypass. The Discharger shall submit notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). The notice shall be sent to the Regional Water Board. As of December 21, 2020, a notice shall also be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J below. Notices shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. [40 CFR §122.41(m)(3)(ii)].

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include

noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation [40 CFR §122.41(n)(1)].

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for noncompliance with such technology based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review [40 CFR Section 122.41(n)(2)].
2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that [40 CFR §122.41(n)(3)]:
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset [40 CFR §122.41(n)(3)(i)];
 - b. The permitted facility was, at the time, being properly operated [40 CFR §122.41(n)(3)(ii)];
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b. below (24-hour notice) [40 CFR §122.41(n)(3)(iii)]; and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above [40 CFR §122.41(n)(3)(iv)].
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof [40 CFR §122.41(n)(4)].

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition [40 CFR §122.41(f)].

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit [40 CFR §122.41(b)].

C. Transfers

This Order is not transferable to any person except after notice to the Regional Water Board. The Regional Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code [40 CFR §122.41(l)(3)] [40 CFR §122.61].

III. STANDARD PROVISIONS – MONITORING

- A. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity [40 CFR §122.41(j)(1)].
- B. Monitoring results must be conducted according to test procedures under 40 CFR Part 136 for the analyses of pollutants unless another method is required under 40 C.F.R. chapter 1, subchapter N. Monitoring must be conducted according to sufficiently sensitive test methods approved under 40 C.F.R. part 136 for the analysis of pollutants or pollutant parameters or as required under 40 C.F.R. chapter 1, subchapter N. For the purposes of this paragraph, a method is sufficiently sensitive when:
 - 1. The method minimum level (ML) is at or below the level of the most stringent effluent limitation established in the permit for the measured pollutant or pollutant parameter, and either the method ML is at or below the level of the most stringent applicable water quality criterion for the measured pollutant or pollutant parameter or the method ML is above the applicable water quality criterion but the amount of the pollutant or pollutant parameter in the facility's discharge is high enough that the method detects and quantifies the level of the pollutant or pollutant parameter in the discharge; or
 - 2. The method has the lowest ML of the analytical methods approved under 40 C.F.R. part 136 or required under 40 C.F.R. chapter 1, subchapter N for the measured pollutant or pollutant parameter.

In the case of pollutants or pollutant parameters for which there are no approved methods under 40 C.F.R. part 136 or otherwise required under 40 C.F.R. chapter 1, subchapter N, monitoring must be conducted according to a test procedure specified in this Order for such pollutants or pollutant parameters. [40 C.F.R. §§ 122.21(e)(3), 122.41(j)(4), 122.44(i)(1)(iv)]

IV. STANDARD PROVISIONS – RECORDS

- A. The Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may

be extended by request of the Regional Water Board Executive Officer at any time [40 CFR §122.41(j)(2)].

B. Records of monitoring information shall include:

1. The date, exact place, and time of sampling or measurements [40 CFR §122.41(j)(3)(i)];
2. The individual(s) who performed the sampling or measurements [40 CFR §122.41(j)(3)(ii)];
3. The date(s) analyses were performed [40 CFR §122.41(j)(3)(iii)];
4. The individual(s) who performed the analyses [40 CFR §122.41(j)(3)(iv)];
5. The analytical techniques or methods used [40 CFR §122.41(j)(3)(v)]; and
6. The results of such analyses [40 CFR §122.41(j)(3)(vi)].

C. Claims of confidentiality for the following information will be denied [40 CFR §122.7(b)]:

1. The name and address of any permit applicant or Discharger [40 CFR §122.7(b)(1)]; and
2. Permit applications and attachments, permits and effluent data [40 CFR §122.7(b)(2)].

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Regional Water Board, State Water Board, or U.S. EPA within a reasonable time, any information which the Regional Water Board, State Water Board, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Regional Water Board, State Water Board, or U.S. EPA copies of records required to be kept by this Order [40 C.F.R. § 122.41(h); Wat. Code, §§ 13267, 13383].

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Regional Water Board, State Water Board, and/or U.S. EPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, V.B.5 and V.B.6 below [40 CFR Section 122.41(k)].

2. All permit applications shall be signed by a responsible corporate officer. For the purpose of this section, a responsible corporate officer means: (i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or (ii) the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiating and directing other comprehensive measures to assure long term environmental compliance with environmental laws and regulations; the manager can ensure that the necessary systems are established or actions taken to gather complete and accurate information for permit application requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures [40 CFR Section 122.22(a)(1)].
3. All reports required by this Order and other information requested by the Regional Water Board, State Water Board, or U.S. EPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above [40 CFR Section 122.22(b)(1)];
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company (a duly authorized representative may thus be either a named individual or any individual occupying a named position) [40 CFR §122.22(b)(2)]; and
 - c. The written authorization is submitted to the Regional Water Board and State Water Board. [40 CFR §122.22(b)(3)].
4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting V.B.3 above must be submitted to the Regional Water Board, State Water Board or USEPA prior to or together with any reports, information, or applications, to be signed by an authorized representative [40 CFR Section 122.22(c)].
5. Any person signing a document under Standard Provisions – Reporting V.B.2 or V.B.3 above shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure

that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations" [40 CFR §122.22(d)].

6. Any person providing the electronic signature for documents described in Standard Provisions – V.B.1, V.B.2, or V.B.3 that are submitted electronically shall meet all relevant requirements of Standard Provisions – Reporting V.B, and shall ensure that all relevant requirements of 40 C.F.R. part 3 (Cross-Media Electronic Reporting) and 40 C.F.R. part 127 (NPDES Electronic Reporting Requirements) are met for that submission. [40 C.F.R § 122.22(e)]

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order [40 CFR §122.41(l)(4)].
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Regional Water Board or State Water Board. As of December 21, 2016, all reports and forms must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J and comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. [40 CFR §122.41(l)(4)(i)].
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 CFR Part 136 or another method required for an industry-specific waste stream under 40 C.F.R. chapter 1, subchapter N, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or reporting form specified by the Regional Water Board [40 CFR §122.41(l)(4)(ii)].
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order [40 CFR §122.41(l)(4)(iii)].

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date [40 CFR §122.41(l)(5)].

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance that may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A written submission shall also

be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance.

For noncompliance events related to sanitary sewer overflows or bypass events, these reports must include the data described above (with the exception of time of discovery), type of overflow structure (e.g. outfall), discharge volume untreated by the treatment works treating domestic sewage, types of human health and environmental impacts of the event, and whether the noncompliance was related to wet weather.

As of December 21, 2020, all reports related to sanitary sewer overflows or bypass events must be submitted to the Regional Water Board and must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting V.J. The reports shall comply with 40 C.F.R. part 3, 40 C.F.R. section 122.22, and 40 C.F.R. part 127. The Regional Water Board may also require the Discharger to electronically submit reports not related to bypass events under this section [40 CFR §122.41(l)(6)(i)].

2. The following shall be included as information that must be reported within 24 hours under this paragraph [40 CFR §122.41(l)(6)(ii)]:
 - a. Any unanticipated bypass that exceeds any effluent limitation in this Order [40 CFR §122.41(l)(6)(ii)(A)].
 - b. Any upset that exceeds any effluent limitation in this Order [40 CFR §122.41(l)(6)(ii)(B)].
3. The Regional Water Board may waive the above-required written report under this provision on a case-by-case basis if an oral report has been received within 24 hours [(40 C.F.R. § 122.41(l)(6)(ii)(B))].

F. Planned Changes

The Discharger shall give notice to the Regional Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when [40 CFR §122.41(l)(1)]:

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in 40 CFR §122.29(b) [40 CFR §122.41(l)(1)(i)]; or

2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants which are subject neither to effluent limitations in this Order nor to notification requirements under 40 CFR Part 122.42(a)(1) (see Additional Provisions—Notification Levels VII.A.1) [40 CFR §122.41(l)(1)(ii)].
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan [40 CFR §122.41(l)(1)(iii)].

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Regional Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with the Order requirements [40 CFR §122.41(l)(2)].

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. For noncompliance events related to sanitary sewer overflows, or bypass events, these reports shall contain the information described in Standard Provision – Reporting V.E and the applicable required data in appendix A to 40 C.F.R. part 127. The Regional Water Board may also require the Discharger to electronically submit reports not related to sanitary sewer overflows, or bypass events under this section [40 CFR Section 122.41(l)(7)].

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Regional Water Board, State Water Board, or U.S. EPA, the Discharger shall promptly submit such facts or information [40 CFR §122.41(l)(8)].

VI. STANDARD PROVISIONS – ENFORCEMENT

- A. The Regional Water Board is authorized to enforce the terms of this permit under several provisions of the CWC, including, but not limited to, sections 13268, 13385, 13386, and 13387.

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Non-Municipal Facilities

Existing manufacturing, commercial, mining, and silvicultural dischargers shall notify the Regional Water Board as soon as they know or have reason to believe [40 CFR §122.42(a)]:

1. That any activity has occurred or will occur that would result in the discharge, on a routine or frequent basis, of any toxic pollutant that is not limited in this Order, if that discharge will exceed the highest of the following "notification levels" [40 CFR §122.42(a)(1)]:
 - a. 100 micrograms per liter (µg/L) [40 CFR §122.42(a)(1)(i)];
 - b. 200 µg/L for acrolein and acrylonitrile; 500 µg/L for 2,4-dinitrophenol and 2-methyl-4,6-dinitrophenol; and 1 milligram per liter (mg/L) for antimony [40 CFR §122.42(a)(1)(ii)];
 - c. Five (5) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge [40 CFR §122.42(a)(1)(iii)]; or
 - d. The level established by the Regional Water Board in accordance with 40 CFR §122.44(f) [40 CFR §122.42(a)(1)(iv)].
2. That any activity has occurred or will occur that would result in the discharge, on a non-routine or infrequent basis, of any toxic pollutant that is not limited in this Order, if that discharge will exceed the highest of the following "notification levels" [40 CFR §122.42(a)(2)]:
 - a. 500 micrograms per liter (µg/L) [40 CFR §122.42(a)(2)(i)];
 - b. 1 milligram per liter (mg/L) for antimony [40 CFR §122.42(a)(2)(ii)];
 - c. Ten (10) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge [40 CFR §122.42(a)(2)(iii)]; or
 - d. The level established by the Regional Water Board in accordance with 40 CFR §122.44(f) [40 CFR §122.42(a)(2)(iv)].

B. Publicly-Owned Treatment Works (POTWs), - Not Applicable

Attachment E – Monitoring and Reporting Program

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

Section 308 of the federal Clean Water Act (CWA) and sections 122.41(h), (j)-(l), 122.44(i), and 122.48 of title 40 of the Code of Federal Regulations (40 C.F.R.) require that all NPDES permits specify monitoring and reporting requirements. Water Code Sections 13267 and 13383 also authorize the Regional Water Board to establish monitoring, inspection, entry, reporting, and recordkeeping requirements. This MRP establishes monitoring and reporting and recordkeeping requirements that implement the federal and California laws and regulations.

I. GENERAL MONITORING PROVISIONS

A. General Monitoring Provision

1. All sampling and sample preservation shall be in accordance with the current edition of "Standard Methods for the Examination of Water and Wastewater" (American Public Health Association) or 40 CFR 136. (revised as of April 11, 2007) "Guidelines Establishing Test Procedures for the Analysis of Pollutants," promulgated by the United States Environmental Protection Agency (EPA).
2. All laboratory analyses shall be performed in accordance with test procedures under 40 CFR 136 (revised as of April 11, 2007) "Guidelines Establishing Test Procedures for the Analysis of Pollutants," promulgated by the United States Environmental Protection Agency (EPA), unless otherwise specified in this MRP. In addition, the Regional Water Board and/or EPA, at their discretion, may specify test methods that are more sensitive than those specified in 40 CFR 136.
3. Chemical, bacteriological, and bioassay analyses shall be conducted at a laboratory certified for such analyses by the California Department of Public Health in accordance with the provision of Water Code Section 13176, or conducted at a laboratory certified for such analyses by the EPA or at laboratories approved by the Regional Water Board's Executive Officer.
4. In conformance with federal regulations 40 CFR 122.45(c), analyses to determine compliance with the effluent limitations for metals shall be conducted using the total recoverable method. For Chromium (VI), the dissolved method in conformance with 40 CFR 136 may be used to measure compliance with the Chromium (VI) limitation.
5. The Discharger shall have, and implement an acceptable written quality assurance (QA) plan for laboratory analyses. Duplicate chemical analyses must be conducted on a minimum of ten percent (10%) of the samples, or at least one sample per month, whichever is greater. A similar frequency shall be maintained for analyzing spiked samples. When requested by the Regional Water Board or EPA, the Discharger will participate in the NPDES discharge monitoring report QA performance study.

6. For every item of monitoring data where the requirements are not met, the monitoring report shall include a statement discussing the reasons for noncompliance, the actions undertaken or proposed that will bring the discharge into full compliance with requirements at the earliest time, and an estimate of the date when the Discharger will be in compliance. The Discharger shall notify the Regional Water Board by letter when compliance with the time schedule has been achieved.
7. The Discharger shall assure that records of all monitoring information are maintained and accessible for a period of at least five years from the date of the sample, report, or application. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge or by the request of the Regional Water Board at any time. Records of monitoring information shall include:
 - a. The information listed in Attachment D - IV Standard Provisions – Records, subparagraph B. of this Order;
 - b. The laboratory which performed the analyses;
 - c. The date(s) analyses were performed;
 - d. The individual(s) who performed the analyses;
 - e. The modification(s) to analytical techniques or methods used;
 - f. All sampling and analytical results, including
 - (1) Units of measurement used;
 - (2) Minimum reporting level for the analysis (minimum level);
 - (3) Results less than the reporting level but above the method detection limit (MDL);
 - (4) Data qualifiers and a description of the qualifiers;
 - (5) Quality control test results (and a written copy of the laboratory quality assurance plan);
 - (6) Dilution factors, if used; and
 - (7) Sample matrix type.
 - g. All monitoring equipment calibration and maintenance records;
 - h. All original strip charts from continuous monitoring devices;
 - i. All data used to complete the application for this Order; and,
 - j. Copies of all reports required by this Order.
 - k. Electronic data and information generated by the Supervisory Control And Data Acquisition (SCADA) System.
8. The flow measurement system shall be calibrated at least once per year or more frequently, to ensure continued accuracy.
9. Monitoring and reporting shall be in accordance with the following:
 - a. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity.

- b. The monitoring and reporting of influent, effluent, and sludge shall be done more frequently as necessary to maintain compliance with this Order and or as specified in this order.
- c. Whenever the Discharger monitors any pollutant more frequently than is required by this Order, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the discharge monitoring report specified by the Executive Officer.
- d. A "grab" sample is defined as any individual sample collected in less than 15 minutes.
- e. A composite sample is defined as a combination of no fewer than eight individual grab samples obtained over the specified sampling period. The volume of each individual grab sample shall be proportional to the discharge flow rate at the time of sampling. The compositing period shall equal the specific sampling period, or 24 hours, if no period is specified.
- f. Daily samples shall be collected on each day of the week.
- g. Monthly samples shall be collected on any representative day of each month.

B. Laboratory Certification

Laboratories analyzing monitoring samples shall be certified by the State Water Resources Control Board (State Water Board), in accordance with the provision of Water Code section 13176, and must include quality assurance/quality control data with their reports.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table 1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Description	Latitude	Longitude
--	M-INFA	Influent flow to the sanitary treatment plant	--	--
001	M-001	Treated sanitary water to the ocean	33° 39' 42.346"N	118° 3' 39.816"W
002	M-002	Produced water, stormwater, deck drainage to the ocean	33° 39' 42.530"N	118° 3' 39.380"W
003	M-003	Stormwater, deck drainage	33° 39' 42.973"N	118° 3' 39.520"W

III. INFLUENT MONITORING REQUIREMENTS

A. Monitoring Location M-INF for Sanitary Waste Water

1. The Discharger shall monitor influent sanitary wastes at M-INF as follows:

Table 2. Influent Monitoring at M-INF

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Total Suspended Solids ¹	mg/L	Grab	Monthly	--

IV. EFFLUENT AND RECEIVING WATER MONITORING REQUIREMENTS

A. Monitoring Sanitary Discharge at M-001

The Discharger shall monitor effluent flow through Outfall 001 at Monitoring Location M-001 as follows. If more than one analytical test method is listed for a given parameter, the Discharger may select from the listed methods and associated Minimum Level:

Table 3. Effluent Monitoring at M-001

Parameter	Units	Sample type	Minimum Sampling Frequency	Required Analytical Test Method and ML
Flow (average daily)	gpd	Estimate	Continuous	--
Total Residual Chlorine	mg/L	Grab	Monthly	See Sections I.A.2., I.A.3., above of this MRP
Total Suspended Solids	mg/L	Grab	Monthly	See Sections I.A.2.

¹ This is not necessary if the effluent total suspended solids concentration has not been recently higher than 60 mg/l.

B. Monitoring Produced Water, Deck Water Discharges at M-002 and Deck Water Discharges at M-003

The Discharger shall monitor effluent flow through Outfall 002 at Monitoring Location M-002 as follows. If more than one analytical test method is listed for a given parameter, the Discharger may select from the listed methods and associated Minimum Level:

Table 4. Effluent Monitoring at M-002

Parameter	Units	Sample type	Minimum Sampling Frequency	Required Analytical Test Method and ML
Flow (average daily)	gpd	Estimate	Continuous	--
Oil & Grease	mg/L	Grab	Each discharge and weekly thereafter for continuous discharges	See Sections I.A.2., I.A.3., above
pH	unit	"	"	"
Total Suspended Solids	mg/L	"	"	"
Ocean Plan Table 1 Pollutants for the protection of marine aquatic life ^{2,3}	µg/L		Each discharge and monthly thereafter for continuous discharges	See Sections I.A.2., I.A.3., above
Benzene	µg/L	"	"	"
Benzo (a) Anthracene	µg/L	"	"	"
Benzo (a) Pyrene	µg/L	"	"	"
Chrysene	µg/L	"	"	"
Benzo (k) Fluoranthene	µg/L	"	"	"
Benzo (b) Fluoranthene	µg/L	"	"	"
Dibenzo (a,h) Anthracene	µg/L	"	"	"
Phenol	µg/L	"	"	"

² https://www.waterboards.ca.gov/water_issues/programs/ocean/docs/cop2015.pdf

³ A statement certifying that radioactive pollutants were not added to the discharge may be submitted in lieu of monitoring

Toluene	µg/L	"	"	"
Ethylbenzene	µg/L	"	"	"
Naphthalene	µg/L	"	"	"
2,4-Dimethylphenol	µg/L	"	"	"
Undissociated Sulfides ⁴	µg/L	"	"	"
Whole Effluent Toxicity ⁵ (see Section VI, below)	TUa	"	"	See below "Section VI. Whole Effluent Toxicity Monitoring Requirements"

Table 5. Effluent Monitoring at M-003

Parameter	Units	Sample type	Minimum Sampling Frequency	Required Analytical Test Method
Flow (average daily)	gpd	estimate	Continuous	
Oil & Grease	mg/L	Grab	Each discharge and weekly thereafter for continuous discharges	See Sections I.A.2., I.A.3., above of this MRP
pH	pH unit	"	"	"
Total Suspended Solids	mg/L	"	"	"
Acute Toxicity	TUa	"	Once during the 5 year permit term when there is a discharge	See below "Section VI. Whole Effluent Toxicity Monitoring Requirements"
Ocean Plan Table 1 Pollutants ⁶ for the protection of marine aquatic life	µg/L	"	Annually ^a , three times during the permit term when there is a discharge	See Sections I.A.2., I.A.3., above of this MRP

^a During the first discharge event of the calendar year.

C. Receiving Water Monitoring

A daily inspection of the receiving water in the vicinity of the discharge(s) shall be made and recorded in a bound, permanent log, for visible oil/sheen, floating solids, discoloration, and foam.

⁴ Use EPA method 376.1 (or equivalent method published in Standard Methods) to analyze for total sulfide. Use the procedure in the method to calculate the undissociated sulfide fraction. Report the undissociated sulfide fraction based on the pH, temperature, and salinity of both the end-of-pipe sample and ambient ocean conditions at the platform. Ambient ocean pH of 8.1 and salinity of 30 g/kg may be used.

⁵ "Acute Manual" refers to protocols described in "Methods for Measuring the Acute Toxicity of Effluents to Freshwater and Marine Organisms" (EPA/821-R-02-012, October 2002).

⁶ A statement certifying that radioactive pollutants were not added to the discharge may be submitted in lieu of monitoring

In lieu of receiving water visual observation to demonstrate no discharge of free oil, the Discharger may analyze effluent at M-002 and M-003 using EPA Method 1617 (Static Sheen Test), which is published as an appendix to subpart A of 40 CFR 345 and in "Analytic Methods for the Oil and Gas Extraction Point Source Category," EPA-821-R-11-004.

V. RECEIVING OCEAN WATER MONITORING REQUIREMENTS

See Section IV.C above.

VI. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Acute Toxicity Test Species and Methods

1. Test Species and Methods

The Discharger shall conduct an acute toxicity test on grab effluent samples collected at the designated NPDES effluent sampling station at the specified frequency whenever there is a discharge. The presence of acute toxicity shall be estimated as specified in the fifth edition of Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms (EPA/821/R-02/012, 2002; Table IA, 40 CFR 136).

The Discharger shall conduct 96-hour static renewal toxicity tests with the vertebrate species: topsmelt, *Atherinops affinis* (Test Method 2006.0); and with the invertebrate species: mysid, *Americamysis bahia*. Each test species should be assessed against

the permitted effluent at least 3 times to determine the most sensitive test species to be used.

If laboratory-held cultures of the topsmelt, *Atherinops affinis*, are not available for testing, then the Discharger shall conduct a 96-hour static renewal toxicity test with the inland silverside, *Menidia beryllina* (Test Method 2006.0).

B. Quality Assurance/Control

1. A series of five dilutions and a control shall be tested. The series shall include the instream waste concentration (IWC), two dilutions below the IWC, and two dilutions above the IWC (e.g., 12.5, 25, 50, 75, and 100 percent effluent, where IWC = 50).
2. If test organisms are not cultured in-house, concurrent testing with reference toxicants shall be conducted. If organisms are cultured in-house, monthly testing with reference toxicants shall be conducted. Reference toxicant tests shall be conducted using the same test conditions as effluent toxicity tests (i.e., same test duration, etc.).
3. If either the reference toxicant test or the effluent test does not meet all test acceptability criteria as specified in the test methods manual, then the Discharger must re-sample and re-test within 14 days.
4. Control and dilution water should be receiving water or lab water, as described in the test methods manual. If dilution water is different from culture water, then a second control using culture water shall also be tested.
5. A quality assurance/quality control (QA/QC) program shall be instituted to verify the results of the effluent toxicity monitoring program. The QA/QC program shall include but shall not be limited to the following: (1) Selection of an independent testing laboratory; (2) Approval by the Regional Water Board's Executive Officer or Executive Officer's designee of the independent testing laboratory; (3) Once during the year, the Discharger shall split samples with the independent laboratory for conducting acute toxicity testing; (4) Results from the independent laboratory shall be submitted to the Regional Water Board and the Discharger for evaluation; (5) The discharger shall review the test acceptability criteria in accordance with the EPA test protocols.

C. Additional (Accelerated) Toxicity Testing

1. If toxicity (as defined) is detected, the Discharger shall increase the frequency of acute toxicity testing to every discharge event whenever any test result exceeds .3 TUa. The Discharger may resume the regular test schedule when two consecutive acute toxicity tests result in less than .3 TUa, or when the results of

the Initial Investigation Reduction Evaluation conducted by the Discharger have adequately addressed the identified toxicity problem.

VII. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

1. The Discharger shall comply with all Standard Provisions in Attachment D of this Order related to monitoring, reporting, and recordkeeping.
2. By April 1 of each year, the Discharger shall submit an annual summary report to the Regional Water Board. The annual report shall include the following:
 - a. Tabular and graphical summaries of the monitoring data obtained during the previous calendar year;
 - b. A discussion of the compliance record and the corrective actions taken or planned, which may be needed to bring the discharge into full compliance with the waste discharge requirements; and
 - c. A summary of the quality assurance (QA) activities for the previous calendar year.

B. Self Monitoring Reports

1. Self-Monitoring Reports (SMRs) shall be submitted by the last day of January, April, July, and October and shall include all monitoring data collected during the previous calendar quarter.
2. The Discharger shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System (CIWQS) Program Web site at http://www.waterboards.ca.gov/water_issues/programs/ciwqs/. The CIWQS Web site will provide additional information for SMR submittal in the event there will be service interruption for electronic submittal.
3. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections III through VII. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
4. Reporting Protocols. The Discharger shall report with each sample result the applicable reported Minimum Level (reported ML, also known as the Reporting Level, or RL) and the current Method Detection Limit (MDL), as determined by the procedure in 40 C.F.R. part 136.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- a. Sample results greater than or equal to the reported ML shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- b. Sample results less than the reported ML, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.

- c. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
 - d. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
5. Compliance Determination. Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined above, Attachment A and Attachment D. For purposes of reporting and administrative enforcement by the Regional Water Board and State Water Board, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level (ML).
 6. Multiple Sample Data. When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses and the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND), the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
 - a. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.

- b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
7. The Discharger shall submit SMRs in accordance with the following requirements:
- a. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
 - b. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the waste discharge requirements; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.

C. Discharge Monitoring Reports

Discharge monitoring reports (DMRs) are U.S. EPA reporting requirements. The Discharger shall electronically certify and submit DMRs together with SMRs using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal shall be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the DMR website at:
http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring.

D. Other Reports – Not Applicable

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ATTACHMENT F – Fact Sheet

As described in Section II of this Order, this Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the discharge.

Table 1. Discharge Information

WDID	8 302043001
Discharger	Dos Cuadras Offshore Resources, LLC
Name of Facility	Platform Eva, Huntington Beach
Facility Location	2.5 Miles Offshore of City of Huntington Beach, Orange County
Facility Contact, Title and Phone	Jay Rao, Environmental Coordinator, jrao@dcorllc.com ; (805) 535-2078
Authorized Person to Sign and Submit Reports	Jay Rao, Environmental Engineer, jrao@dcorllc.com ; (805) 535-2078 Scott Knight, ES and NRC Manager, sknight@dcorllc.com ; (805)535-2066
Mailing Address	290 Maple Court, Suite 290, Ventura, CA93003
Billing Address	SAME
Type of Facility	Oil and Gas Drilling/Production Platform
Major or Minor Facility	Minor
Threat to Water Quality	2
Complexity	C
Pretreatment Program	N
Recycling Requirements	N
Facility Permitted Flow	Sanitary Waste Water- 2,500 gpd yearly average Produced Water/Deck Drainage- 30,000 barrels/day, or 1.26 mgd Deck Drainage - variable
Facility Design Flow	Sanitary Waste Water - 2,500 gpd Produced Water//Deck Drainage - 30,000 barrels/day, or 1.26 mgd Deck Drainage - variable
Watershed	Pacific Ocean
Receiving Water	Offshore Zone of Pacific Ocean
Receiving Water Type	Ocean Water

- A. Dos Cuadras Offshore Resources LLC (hereinafter Discharger) is the owner and operator of Platform Eva (hereinafter Facility), an oil and gas drilling/production platform

located in the offshore zone of the Pacific Ocean approximately 2.5 miles west of the City of Huntington Beach, in Orange County, CA (see Attachments B and C).

For the purposes of this Order, references to the "discharger" or "permittee" in applicable federal and State laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

- B.** Discharges from Platform Eva include secondary treated sanitary wastewater and treated produced water from the extraction of crude oil and natural gas. Deck drainage/stormwater is directed to the produced water treatment system. These discharges are to the offshore zone of the Pacific Ocean, a water of the United States.

The discharges are currently regulated by Order No. R8-2012-0022, which was adopted on October 26, 2012. Order No. R8-2012-0022 expired on November 1, 2017; however, the terms and conditions of that Order have been automatically continued and remain in effect until new Waste Discharge Requirements and National Pollutant Discharge Elimination System (NPDES) permit are adopted pursuant to this Order.

- C.** The Discharger filed a report of waste discharge and submitted an application for reissuance of its Waste Discharge Requirements (WDRs) and NPDES permit on April 12, 2017.

The Discharger proposes to increase their permitted secondary treated sanitary wastewater flow from 1,500 gpd to approximately 2,500 gpd yearly average to match the permitted design flow. The permitted and design flow rate for discharge of treated produced water/deck drainage from the oil and gas drilling/production platform remains the same at 1.26 mgd.

An additional discharge point (DP 003) for deck drainage is proposed during high intensity storm events to discharge excess storm water runoff and deck drainage into the Pacific Ocean.

- D.** Regulations at 40 C.F.R. section 122.46 limit the duration of NPDES permits to a fixed term not to exceed five years. Accordingly, Table 3 of this Order limits the duration of the discharge authorization. However, pursuant to California Code of Regulations, title 23, section 2235.4, the terms and conditions of an expired permit are automatically continued pending reissuance of the permit if the Discharger complies with all federal NPDES requirements for continuation of expired permits.

II. FACILITY DESCRIPTION

A. Description of Facility

1. Description of Wastewater and Control Systems

a. Sanitary Wastewater

Up to approximately 2,500 gallons per day (gpd) of treated sanitary wastewater are discharged through a pipe at Discharge Point 001 (DP 001) from a packaged treatment plant on the platform. The on-site treatment system is a Type II Coast Guard approved Marine Sanitation Device (MSD), a Fox Pac Style FD 500 secondary treatment unit with a chlorine contact chamber. The MSD is a secondary treatment plant with three operations: 1) aeration, 2) clarification and 3) disinfection. The two-tank arrangement includes an aeration and media chamber which is involved in aerobic biological media filtration, and a secondary chamber for disinfection. Dry, soluble chlorine tablets are used to disinfect the effluent. The concentration of chlorine residual in effluent is always maintained greater than 1 mg/l.

Most of the year Platform Eva has only up to 5 or 6 people on board. During these periods, the average sanitary waste discharge ranges from 100 to 300 gpd. However, about 3 or 4 months each year, such as during drilling operations and significant maintenance, there are additional crew members on the platform. During those times, the discharge may increase to up to 2500 gpd.

b. Produced Water

In recent years, five new wells have been added to the existing production stream. These new wells have increased the total produced water volume to approximately 30,000 barrels per day, or 1.26 mgd. All produced water from the extraction of crude oil and natural gas is treated to remove oil and solids and is normally re-injected into the oil-bearing formation. However, occasionally the injection system may fail to operate properly and/or must be taken offline for repairs. During these periods, up to 30,000 barrels (1.26 mgd) of treated oil-free wastewater may be discharged to the Pacific Ocean at Discharge Point 002 (DP 002). In the last 10 years, there was no such discharge at DP 002.

c. Deck Drainage

Deck drainage includes any waste resulting from deck washings, spillage, rainwater, and runoff from gutters and drains including drip pans and work areas within facilities subject to Subpart A of 40 CFR 435. Deck drainage from the Platform Eva is captured in grated troughs located on the periphery of each deck. These flows, which are often contaminated with oil and drilling wastes, are collected in a wastewater holding tank and either directed to the produced water treatment system for injection or pumped through an undersea pipe to an onshore treatment facility. The surface area of the platform exposed to storm water is 110 feet by 110 feet. The wastewater tank has a holding capacity of 10,000 gallons.

During high intensity storm events, deck drainage from the wastewater holding tank that cannot be directed to the injection system or pumped to the onshore treatment facility in excess of the tank holding capacity will be discharged directly to the ocean

in a controlled manner through the newly added deck drainage discharge point, DP 003.

d. Drilling Mud, Drill Cuttings, and Cement Slurry

The discharge of drilling cuttings and fluids within three miles of the United States shoreline is not permitted by Federal regulation (Oil and Gas Extraction Point Source Category, 40 CFR Part 435). Accordingly, all semisolid and solid wastes (drilling mud and cuttings, cement slurry, rags, etc.) or other waste materials that are petroleum based or are contaminated with hydrocarbons are transported to an onshore facility for disposal at an approved Treatment, Storage and Disposal Facility.

Although the disposal of cement slurry used for stabilizing the borehole casing is not specifically prohibited in the EPA guidelines, bioassay analyses of various cement slurry mixes in other previous cases have indicated toxicity levels for mysid shrimp (*Mysidopsis bahia*). Physical smothering by disposed solids is more of a concern for benthic life forms. Cement slurry is normally barged ashore. This Order prohibits discharges of cement slurry into the ocean.

B. Discharge Points and Receiving Water

1. Wastewater Discharge Points

Wastewater is discharged from Platform Eva to the Pacific Ocean, 2.5 miles offshore of the City of Huntington Beach. Sanitary waste is discharged at Discharge Point 001 (DP 001). Combined deck drainage and produced water may be discharged from DP 002. During heavy rains, deck drainage may also be discharged from DP 003.

The following table summarizes wastewater sources and treatment processes.

Table 2. Wastewater Discharge Points and Sources

Discharge Point	Latitude/ Longitude	Wastewater Discharged	Treatment Process	Flow, mgd
001	33°39' 42.346"N 118°3' 39.816" W	Treated sanitary wastewater	Secondary treatment, disinfection	Up to 2,500 gpd
002	33°39' 42.530"N 118°3' 39.380" W	Treated produced water and deck drainage (during emergencies only)	Remove oil and solids	Up to 30,000 barrels/day, (1.26 mgd)
003	33°39' 42.973"N 118°3' 39.520" W	Deck drainage (during high intensity storm events only)	Rain Event Action Plan,	Variable – depends on rainfall intensity

Table 2. Wastewater Discharge Points and Sources

Discharge Point	Latitude/ Longitude	Wastewater Discharged	Treatment Process	Flow, mgd
			Best Management Practices (See also Order Section III.J, Section IV. B.1., B.2 and Section VI.C.4.f	

2. Receiving Water

The discharge is to the Offshore Zone of the Pacific Ocean.

C. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data

1. Effluent and Receiving Water Limitations contained in Order No. R8-2012-0022 and a summary of representative monitoring data collected during the term of the Order are as follows:

Table 3. Historic Effluent Monitoring Data at M-001

		Monitoring Data (From 2013 – To 2017)	
Design Flow Average (gpd)		Highest 30-day Average Discharge (gpd)	Highest Daily Discharge(gpd)
2,500		220	390
Parameter/ Effluent Limitations	Year	Total Suspended Solids (TSS), mg/l 60 mg/l	Chlorine Residual Between 1 and 8 µg/l
	2013	54.1	5.5
	2014	56	3.5
	2015	32	4.5
	2016	42.55	4.3
	2017	34.6	3.8

2. No produced water has been discharged since prior to the adoption of Order No. R8-2007-0002.

D. Compliance Summary

No violations of Order No. R8-2012-0022 have been reported.

E. Planned Changes

At this time, there are no planned changes to the facility during this Order term that may impact Order development.

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in the proposed Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit authorizing the Discharger to discharge into waters of the United States at the discharge locations described in Table 2 subject to the WDRs in this Order..

B. California Environmental Quality Act (CEQA)

Under Water Code Section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, of Division 13 of the Public Resources Code. (County of Los Angeles v. California State Water Resources Control Board (2006) 143 Cai.App.4th 985, mod. (Nov. 6, 2006,B184034) 50 Cai.Rptr.3d 619, 632-636.).

C. State and Federal Regulations, Policies, and Plans

1. Water Quality Control Plans

The Regional Water Quality Control Board adopted a Water Quality Control Plan for the Santa Ana Region (hereinafter Basin Plan) that became effective on January 24, 1995. The Basin Plan designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives. In addition, State Water Resources Control Board (State Water Board) Resolution No. 88-63 requires that, with certain exceptions, the Regional Water Board assign the municipal and domestic supply use to water bodies that do not have beneficial uses listed in the Basin Plan. The Pacific Ocean Offshore Zones are excepted from the municipal and domestic supply beneficial use. For the protection and enhancement of ocean water quality, the Basin Plan incorporates by reference the provisions of the State Board's *Water Quality Control Plan for Ocean Waters of California* (Ocean Plan 2015).

Beneficial uses applicable to Pacific Ocean offshore zones are as follows:

Table 4. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001, 002 and 001	Pacific Ocean Offshore Zone	Present or Potential Beneficial Uses: a. Industrial service supply(IND), b. Navigation (NAV), c. Water contact recreation (REC-1), d. Non-contact water recreation (REC-2), e. Commercial and sport fishing (COMM), f. Wildlife habitat (WILD), g. Rare, threatened or endangered species (RARE), h. Spawning, reproduction, and development (SPWN), i. Marine habitat (MAR), and j. Shellfish harvesting (SHELL).

Requirements of this Order implement the Basin Plan.

2. California Ocean Plan

The State Water Board adopted the Water Quality Control Plan for Ocean Waters of California, California Ocean Plan (Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, 2005, 2009, 2012 and 2015. The State Water Board adopted the latest amendment to the Ocean Plan on May 6, 2015 and it became effective on January 28, 2016. The Ocean Plan is applicable, in its entirety, to point source discharges to the ocean. The Ocean Plan identifies beneficial uses of ocean waters of the State to be protected, as summarized below.

Table 5. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Uses
001, 002 and 003	Offshore Zone of Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; marine habitat; fish migration, fish spawning and shellfish harvesting.

In order to protect the beneficial uses, the Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the Ocean Plan.

4. Alaska Rule

On March 30, 2000, USEPA revised its regulation that specifies when new and revised State and Tribal water quality standards (WQS) become effective for CWA purposes (40 CFR 131.21, 65 FR 24641, April 27, 2000). Under the revised regulation (also known as the Alaska rule), new and revised standards submitted to USEPA after May 30, 2000, must be approved by USEPA before being used for CWA purposes. The final rule also provides that standards already in effect and

submitted to USEPA by May 30, 2000, may be used for CWA purposes, whether or not approved by USEPA.

5. Effluent Limitations Guidelines

The Environmental Protection Agency (EPA) promulgated Effluent Guidelines and Standards for the "Oil and Gas Extraction Point Source Category" became effective on April 13, 1979. These regulations are contained in 40 CFR Part 435 and were amended in 1993, 1996, 2001 and 2016. These regulations established effluent limitation guidelines for existing and new source performance standards for various in plant waste streams. These regulations apply to discharges from the Facility.

6. Antidegradation Policy

Federal regulation 40 C.F.R. section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution 68-16 ("Statement of Policy with Respect to Maintaining High Quality of Waters in California"). Resolution 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Regional Water Board's Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of section 131.12 and State Water Board Resolution 68-16. The Regional Water Board finds that the discharges would have no adverse impacts on the beneficial uses of the receiving waters.

7. Anti-Backsliding Requirements.

Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed. All effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order No. R8-2012-0022.

8. Monitoring and Reporting Requirements

Section 122.48 of 40 CFR requires that all NPDES permits specify requirements for recording and reporting monitoring results. Sections 13267 and 13383 of the CWC authorize the Regional Water Board to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) establishes monitoring and reporting requirements to implement federal and State requirements. This MRP is provided in Attachment E.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source discharges to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations: 40 CFR 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 CFR 122.44(d) requires that permits include water quality-based effluent limitations to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water.

A. Discharge Prohibitions

Discharge Prohibitions in this Board Order are based on the Federal Clean Water Act, Basin Plan, State Water Resources Control Board's plans and policies, California Ocean Plan, and U.S. Environmental Protection Agency guidance and regulations, and previous permit Order No. R8-2012-0022 provisions. The prohibitions are consistent with the requirements set for other discharges regulated by NPDES permits adopted by the Regional Water Board.

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing USEPA permit regulations at 40 CFR 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards.

The discharge authorized by this Order must meet minimum federal technology-based requirements based on secondary treatment standards at 40 CFR 133 and /or Best Professional Judgment (BPJ) in accordance with 40 CFR 125.3. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Effluent Limitations Guidelines and Standards for the Oil and Gas Extraction Point Source Category, for existing and new sources, at 40 CFR 435.

The CWA requires USEPA to develop effluent limitations, guidelines and standards (ELGs) representing application of BPT, BAT, BCT, and NSPS. Section 402(a)(1) of the CWA and 40 CFR 125.3 of the NPDES regulations authorize the use of best professional judgment (BPJ) to derive technology-based effluent limitations on a case-by-case basis where ELGs are not available for certain industrial categories and/or pollutants of concern. Where BPJ is used, the permit writer must consider specific factors outlined in 40 CFR 125.3.

2. Applicable Technology-Based Effluent Limitations

- a. This Facility utilizes a secondary treatment system to remove suspended solids, which meets the technology-based regulations for the minimum level of effluent quality attained by secondary treatment in terms of total suspended solids and removal rate. The following effluent limitation is specified in this Order for DP 001, which is based on Table 2 (formerly Table A) in Section III. B. of the Ocean Plan.

Table 6. Effluent Limitations for Sanitary Waste at DP-001

Parameters	Limiting Concentrations		
	Units of Measurement	Removal Rate	Daily Maximum
Suspended solids	mg/L	75%	60

- b. U.S. EPA has established standards of performance for the Oil and Gas Extraction Point Source Category, for existing and new sources, at 40 CFR Part 435. Effluent limitations guidelines contained in "Subpart A – Offshore Subcategory" apply to Platform Eva. Standards for of performance for new sources (NSPS) are applicable to Platform Eva because construction of the platform was commenced in 1984, after the publication of regulations on April 13, 1979, which proposed standards of performance for the industry. The following effluent guidelines, which are based on 40 CFR 435.15, are applicable to Platform Eva:

- (1) Effluent Limits applicable to DP 001 - sanitary wastewater.

40 CFR 435.15 specifies that the chlorine residual concentration in the effluent of marine sanitary devise shall be all the time greater than 1 mg/l. This Order requires a chlorine residual concentration of at least 1 mg/l to be maintained in the discharge at DP 001 at all times.

- (2) Effluent limits applicable to DP 002- produced water and deck drainage

40 CFR 435.15 specifies that the oil and grease limits of produced wastewater and deck drainage discharged to the ocean shall be as follow:

Table 7. 40 CFR 435.15 Oil and Grease Criteria at DP 002

Waste Source	Daily Max. (mg/L)	30-Day Avg (mg/L)
Produced Water	42	29

This Order contains a daily maximum Oil and Grease effluent limit for the discharge of produced water and deck drainage/stormwater at DP 002 based on the above federal regulation. However, the monthly average

effluent limitation specified in this order (25 mg/l) is based on Table 2 of the Ocean Plan, as it is more stringent than the federal regulation.

(3) Effluent limits applicable to DP-003 - deck drainage

40 CFR 435.15 specifies that discharge of free oil as determined by the presence of a film or sheen upon or a discoloration of the surface of the receiving water (visual sheen) is prohibited. This Order prohibits the discharge of free oil to the Pacific Ocean.

(4) Effluent limits applicable to other wastes.

40 CFR 435.15 also specifies that discharge of drilling mud, cuttings, and cement slurry into the Ocean within three miles of the shore is prohibited. This Order prohibits the discharge of these wastes to the Pacific Ocean.

C. Water Quality-Based Effluent Limitations (WQBELs)

1. Scope and Authority

CWA Section 301(b) and section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards.

Section 122.44(d)(1)(i) mandates that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, water quality-based effluent limitations (WQBELs) must be established using: (1) USEPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan and the Ocean Plan, and achieve applicable water quality objectives and criteria that are contained in other State plans and policies, or any applicable water quality criteria contained in the Ocean Plan.

2. Applicable Beneficial Uses

All applicable beneficial uses are listed in Section III.C.1., above.

3. Applicable Water Quality Objectives

- a. The platform structure creates an artificial reef that supports shellfish. As such, previous permits required the discharge to be regulated so as to protect shellfish harvesting activities. However, due to safety and operational concerns, fishing and harvesting of shellfish within 200 feet of Platforms Eva is prohibited by the discharger. Consequently, the Ocean Plan bacterial standards listed in Section II.B.2.a.(1) are not applicable to this discharge.
- b. Water Quality Objectives specified in Table 1 (formerly Table B in previous editions of the Ocean Plan) of the Ocean Plan are applicable for combined produced water and deck drainage discharged from DP 002 and deck drainage from DP 003. As noted in Section III.C of this Fact Sheet, the State Water Board adopted an Ocean Plan that designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the Ocean Plan. The beneficial uses applicable to the Pacific Ocean are summarized in Section III.C.1 and 2 of this Fact Sheet. The Ocean Plan includes both narrative and numeric water quality objectives applicable to the receiving water.

Table 1 of the Ocean Plan includes the following water quality objectives for toxic pollutants and whole effluent toxicity:

- i. 6-month median, daily maximum, and instantaneous maximum objectives for 21 chemicals and chemical characteristics, including total residual chlorine and chronic toxicity, for the protection of marine aquatic life.
- ii. 30-day average objectives for 20 non-carcinogenic chemicals for the protection of human health.
- iii. 30-day average objectives for 42 carcinogenic chemicals for the protection of human health.
- v. Daily maximum objectives for acute and chronic toxicity.

4. Determining the Need for WQBELs

- a. Coliform. The total residual chlorine concentration is constantly maintained between 2 mg/l and 5 mg/l in the treated sanitary waste effluent. However, receiving water samples collected down current of the point of discharge have shown the presence of coliform bacteria. Studies have shown that this is not an indication of poor disinfection of the wastewater; but rather, the bacteria found in the waters around Platform Eva is likely due to seals frequenting the area.

The Discharger owns and operates another oil and gas drilling/production platform, Platform Esther, which is currently regulated under Order No. R8-2012-

023. Platform Esther is 1.5 miles west of Seal Beach, while Eva is 2.5 miles west of Huntington Beach. These two sites have the similar facilities and receiving waters. The permits for both Eva and Esther have total coliform limits for receiving waters for their sanitary wastewater discharges to protect shellfish harvesting. The permits specify that the median total coliform density shall not exceed 70 per 100 ml and not more than 10 percent of the samples shall exceed 230 per 100 ml outside the Zone of Initial Dilution (ZID). The Discharger has been required to take representative samples of the receiving water at a point of 20 feet down current of the sanitary waste discharge within the top 10 feet of the water column. The down current samples were required to be analyzed for total coliform organisms, fecal coliform concentration, and total chlorine residual. The Discharger voluntarily collected samples at a point of 100 feet up-current of the discharge points, as well.

A review of the monitoring data collected in 2009 and 2010 show that most of the time, the coliform results for up-current samples were as high, and occasionally higher, than the down-current sample results. These data indicated that coliform density is elevated in the background receiving water. The Discharger concluded that the high coliform in the background receiving water is caused by seals and other marine animals in the vicinity of the platform. Therefore, the coliform data collected in the receiving water are not representative of the impact of treated sanitary waste discharge on the receiving water.

The Discharger conducted a study comparing the chlorine residual concentration to the coliform density in the treated sanitary wastewater. The study showed that as long as the chlorine residual concentration in the effluent is maintained greater than 1 mg/l, the coliform density will be less than 1 CFU/100ml in the effluent.

As discussed above in Section IV.B.2.b.(1), this Order requires a chlorine residual concentration of at least 1 mg/l to be maintained in the discharge at DP 001 at all times. Based on the above-mentioned study, this will insure that the coliform densities in the effluent are at levels that are protective of the beneficial uses of the receiving waters. Consequently, the chlorine residual limit was specified in Order R8-2012-0022 in lieu of a WQBEL for coliform organisms.

- b. Chlorine Residual. Order No. R8-2007-0002 established chlorine residual limits in the receiving water outside the ZID not to exceed a 6-month median of 2 µg/L; a maximum daily of 8 µg/L; nor an instantaneous maximum of 60 µg/L. These limits are based on the water quality objectives specified in the Ocean Plan.

The Discharger has routinely monitored the receiving water for chlorine residual down-current of the point of discharge and has been unable to detect any amount in the Ocean waters. However, the Discharger must use a potable meter to measure chlorine residual in the receiving water and the meter can detect concentrations down to only 20 µg/L, which is greater than two of the limits. The Discharger claims that this is the most sensitive field instrument that is currently available.

During the R8-2007-0002 permit term, the Discharger conducted a study comparing the chlorine residual concentrations in the treated sanitary waste stream and the receiving water, which found that with concentrations in the effluent as high as 8.8 mg/l, the concentration in the receiving water was still found to be less than 20 µg/l. Therefore, in lieu of continuing with the use of receiving water limits for chlorine residual, the subsequent Order No. R8- 2012-0022 established an upper limit for chlorine residual in the treated sanitary wastewater discharged at DP 001 of 8.8 mg/l. This Order continues the requirement for the upper limit of 8.8 mg/l chlorine residual established in the treated sanitary wastewater discharge at DP 001.

- c. Ocean Plan Table 1 constituents. As noted above, water quality objectives specified in Table 1 of the Ocean Plan are applicable for produced water discharging from DP 002 and DP 003 to the ocean. However, since there have not been any recent discharges of produced water or deck drainage, there is no data available to determine if there is a reasonable potential for the discharge to cause or contribute to an exceedance of those objectives. Consequently, no water quality-based effluent limits for those constituents are proposed in this Order. Nevertheless, the Discharger is required to monitor for those constituents whenever there is a discharge at DP 002 and to undertake toxicity reduction activities in the event that toxicity in the discharge exceeds the numeric acute toxicity trigger.

This Order adds a new discharge point, DP 003 for deck drainage flows during high intensity storm events that cannot be directed to the injection system or pumped to the onshore treatment facility, that exceeds the wastewater tank holding capacity. The Discharger is required to monitor discharges from discharge point DP 003 during high intensity storm events for Table 1 constituents, once annually at least three times during the 5-year permit term, with the exception of acute toxicity which is required to be conducted at least once during the permit term if there is a discharge. Additionally, the Discharger is required to monitor flow, oil and grease, total suspended solids and pH during each discharge event. The Order also specifies that the Discharger implement measures to minimize discharges of pollutants during high intensity storm events. This Order may be reopened to include appropriate WQBELs for Table 1 constituents, should the monitoring data indicate that such limits are necessary.

D. Final Effluent Limitation Considerations

Stringency of Requirements for Individual Pollutants. This Order contains both technology-based and water quality-based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions on oil and grease. Restrictions on these pollutants are discussed in section IV. B. 2. of the Fact Sheet. The technology-based pollutant restrictions in this Order implement the minimum, applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum,

federal technology-based requirements that are necessary to meet water quality standards.

Water quality-based effluent limitations have been scientifically derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. All beneficial uses and water quality objectives contained in the Basin Plan and the Ocean Plan were approved under state law and submitted to and approved by USEPA prior to May 30, 2000. Any water quality objectives and beneficial uses submitted to USEPA prior to May 30, 2000, but not approved by USEPA before that date, are nonetheless "applicable water quality standards for purposes of the CWA" pursuant to 40 CFR 131.21(c)(1).

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

As discussed above, this Order continues the effluent limits for chlorine residual specified in Order No-R8-2012-0022 in lieu of the coliform and chlorine residual receiving water limits that were specified in Order No. R8-2007-0002.

VI. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

Section 122.48 of 40 CFR requires all NPDES permits to specify recording and reporting of monitoring results. Sections 13267 and 13383 of the California Water Code authorize the Regional Water Board to require technical and monitoring reports. The Monitoring and Reporting Program, Attachment E of this Order, establishes monitoring and reporting requirements to implement federal and state requirements. The Discharger is required to conduct monitoring of the permitted discharges in order to evaluate compliance with permit conditions.

The following provides the rationale for the monitoring and reporting requirements contained in the Monitoring and Reporting Program (MRP) for this Facility.

A. Influent Monitoring

This Order requires the sanitary waste treatment system to remove at least 75% of the total suspended solids (TSS) entering the system. Consequently, the MRP requires influent samples on the same day as the effluent samples are taken and analyzed for TSS¹.

B. Effluent Monitoring

¹ Sampling is not necessary if the effluent total suspended solids concentration has not been recently higher than 60 mg/l.

1. The Discharger is required to maintain the concentration of chlorine residual in the effluent discharged at DP 001 between 1 mg/l and 8.8 mg/l. This Order also requires that the TSS concentration not exceed 60 mg/l. The Discharger is required to sample the discharge at DP 001 on a monthly basis and analyze the samples for chlorine residual and TSS to assess compliance with those limits.
2. The Discharger is also required to make visual observations of the area near DP 001 for floatable or settleable materials to assess compliance with the narrative effluent limits specified in this Order.
3. In the event of a discharge at DP 002 and DP 003, the Discharger is required to grab a representative sample of the wastewater during the first day of discharge and analyze the sample for Oil and Grease to assess compliance with the limits specified in this Order.
4. Although this Order does not specify any limits based on Table 1 of the Ocean Plan, the Discharger is required to also analyze all samples of the discharge at DP 002 and DP 003 for those constituents.

C. Whole Effluent Toxicity Testing Requirements

Whole effluent toxicity (WET) is an indicator of the receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and may measure mortality, reproduction, and growth. Chronic toxicity is a more stringent requirement than acute toxicity.

There has not been any discharges of produced water or deck drainage from the facility over since prior to the R8-2007-0002 permit term. Based on the projected infrequent discharge from the facility, this Order includes monitoring requirements for acute toxicity in the MRP (Attachment E).

C. Other Monitoring Requirements – Not Applicable

VII. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 CFR 122.42, are provided in Attachment D to the order.

40 CFR 122.41(a)(1) and (b) through (n) establish conditions that apply to all State-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. 40 CFR 123.25(a)(12) allows the State to omit or modify conditions to impose more stringent requirements. In accordance with

40 CFR 123.25, this Order omits federal conditions that address enforcement authority specified in 40 CFR 122.41(j)(5) and (k)(2) because the enforcement authority under the CWC is more stringent. In lieu of these conditions, this Order incorporates by reference CWC Section 13387(e).

B. Special Provisions

1. Reopener Provisions

The reopener provisions in this Order are based on 40 CFR 123. The Regional Water Board may reopen the permit to modify permit conditions and requirements. Causes for modifications include the promulgation of new regulations, or adoption of new regulations by the State Board or Regional Water Board, including revisions to the Basin Plan, the Ocean Plan and Statewide Policy on Clean Water Act Regulations.

2 Special Studies and Additional Monitoring Requirements – See Order, Section VI.C.2

3. Best Management Practices and Pollution Prevention – N/A

4. Construction, Operation, and Maintenance Specifications – See Order, Section VI.C.4

5. Other Special Provisions – N/A

6. Compliance Schedules – N/A

VIII.PUBLIC PARTICIPATION

The California Regional Water Quality Control Board, Santa Ana Region (Regional Water Board) is considering the issuance of waste discharge requirements (WDRs) that will serve as a National Pollutant Discharge Elimination System (NPDES) permit for Platform Eva. As a step in the WDR adoption process, the Regional Water Board staff has developed tentative WDRs. The Regional Water Board encourages public participation in the WDR adoption process.

A. Notification of Interested Parties

The Regional Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Notification was provided through the posting of Notice of Public Hearing in the area of the discharge and at the Regional Water Board website: https://www.waterboards.ca.gov/santaana/public_notices/public_notices.html on or before June 15, 2018.

B. Written Comments

The staff determinations are tentative. Interested persons are invited to submit written comments concerning these tentative WDRs. Comments should be submitted either in person or by mail to the Executive Officer at the Regional Water Board at the address above on the cover page of this Order.

To be fully responded to by staff and considered by the Regional Water Board, written comments should be received at the Regional Water Board offices by 5:00 p.m. on May 28, 2018.

C. Public Hearing

The Regional Water Board will hold a public hearing on the tentative WDRs during its regular Board meeting on the following date and time, at the following location:

Date: June 15, 2018
Time: 9:00 A.M.
Location: City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648

Interested persons are invited to attend. At the public hearing, the Regional Water Board will hear testimony, if any, pertinent to the discharge, WDRs, and permit. Oral testimony will be heard; however, for accuracy of the record, important testimony should be in writing.

Please be aware that date and venue may change. You can access our web address at: http://www.waterboards.ca.gov/santaana/board_info/agendas/, where the agenda will be posted noting any possible changes with the date and/or location.

D. Reconsideration of Waste Discharge Requirements

Any person aggrieved by the action of the Regional Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., within 30 calendar days of the date of adoption of this Order at the following address, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street

Sacramento, CA 95812-0100

Or by email at waterqualitypetitions@waterboards.ca.gov

For instructions on how to file a petition for review, see:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetition_instr.s.html

E. Information and Copying

The Report of Waste Discharge (ROWD), related documents, tentative effluent limitations and special provisions, comments received, and other information are on file and may be inspected at the Regional Water Board's office at any time between 9:00 a.m. and 3:00 p.m. Monday through Friday. Copying of documents may be arranged through the Regional Water Board by calling (951) 782-4310.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Regional Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this Order should be directed to Najah Amin at (951) 320-6362.

ATTACHMENT G– MINIMUM LEVELS

The Minimum* Levels identified in this appendix represent the lowest concentration of a pollutant that can be quantitatively measured in a sample given the current state of performance in analytical chemistry methods in California. These Minimum* Levels were derived from data provided by state-certified analytical laboratories in 1997 and 1998 for pollutants regulated by the California Ocean Plan and shall be used until new values are adopted by the SWRCB. There are four major chemical groupings: volatile chemicals, semi-volatile chemicals, inorganics, pesticides & PCB's. "No Data" is indicated by "--".

TABLE II-1
MINIMUM* LEVELS – VOLATILE CHEMICALS

Volatile Chemicals	CAS Number	Minimum* Level (ug/L)	
		GC Method ^a	GCMS Method ^b
Acrolein	107028	2.	5
Acrylonitrile	107131	2.	2
Benzene	71432	0.5	2
Bromoform	75252	0.5	2
Carbon Tetrachloride	56235	0.5	2
Chlorobenzene	108907	0.5	2
Chlorodibromomethane	124481	0.5	2
Chloroform	67663	0.5	2
1,2-Dichlorobenzene (volatile)	95501	0.5	2
1,3-Dichlorobenzene (volatile)	541731	0.5	2
1,4-Dichlorobenzene (volatile)	106467	0.5	2
Dichlorobromomethane	75274	0.5	2
1,1-Dichloroethane	75343	0.5	1
1,2-Dichloroethane	107062	0.5	2
1,1-Dichloroethylene	75354	0.5	2
Dichloromethane	75092	0.5	2
1,3-Dichloropropene (volatile)	542756	0.5	2
Ethyl benzene	100414	0.5	2
Methyl Bromide	74839	1.	2
Methyl Chloride	74873	0.5	2
1,1,2,2-Tetrachloroethane	79345	0.5	2
Tetrachloroethylene	127184	0.5	2
Toluene	108883	0.5	2
1,1,1-Trichloroethane	71556	0.5	2
1,1,2-Trichloroethane	79005	0.5	2
Trichloroethylene	79016	0.5	2
Vinyl Chloride	75014	0.5	2

Table II-1 Notes

a) GC Method = Gas Chromatography

b) GCMS Method = Gas Chromatography / Mass Spectrometry

* To determine the lowest standard concentration in an instrument calibration curve for these techniques, use the given ML (see Chapter III, "Use of Minimum* Levels").

TABLE II-2
MINIMUM* LEVELS – SEMI VOLATILE CHEMICALS

Semi-Volatile Chemicals	CAS Number	Minimum* Level (ug/L)			
		GC Method ^{a,*}	GCMS Method ^{b,*}	HPLC Method ^{c,*}	COLOR Method ^d
Acenaphthylene	208968	--	10	0.2	--
Anthracene	120127	--	10	2	--
Benzidine	92875	--	5	--	--
Benzo(a)anthracene	56553	--	10	2	--
Benzo(a)pyrene	50328	--	10	2	--
Benzo(b)fluoranthene	205992	--	10	10	--
Benzo(g,h,i)perylene	191242	--	5	0.1	--
Benzo(k)fluoranthene	207089	--	10	2	--
Bis 2-(1-Chloroethoxy) methane	111911	--	5	--	--
Bis(2-Chloroethyl)ether	111444	10	1	--	--
Bis(2-Chloroisopropyl)ether	39638329	10	2	--	--
Bis(2-Ethylhexyl) phthalate	117817	10	5	--	--
2-Chlorophenol	95578	2	5	--	--
Chrysene	218019	--	10	5	--
Di-n-butyl phthalate	84742	--	10	--	--
Dibenzo(a,h)anthracene	53703	--	10	0.1	--
1,2-Dichlorobenzene (semivolatile)	95504	2	2	--	--
1,3-Dichlorobenzene (semivolatile)	541731	2	1	--	--
1,4-Dichlorobenzene (semivolatile)	106467	2	1	--	--
3,3-Dichlorobenzidine	91941	--	5	--	--
2,4-Dichlorophenol	120832	1	5	--	--
1,3-Dichloropropene	542756	--	5	--	--
Diethyl phthalate	84662	10	2	--	--
Dimethyl phthalate	131113	10	2	--	--
2,4-Dimethylphenol	105679	1	2	--	--
2,4-Dinitrophenol	51285	5	5	--	--
2,4-Dinitrotoluene	121142	10	5	--	--
1,2-Diphenylhydrazine	122667	--	1	--	--
Fluoranthene	206440	10	1	0.05	--
Fluorene	86737	--	10	0.1	--
Hexachlorobenzene	118741	5	1	--	--
Hexachlorobutadiene	87683	5	1	--	--
Hexachlorocyclopentadiene	77474	5	5	--	--

Semi-Volatile Chemicals	CAS Number	GC Method ^{a,*}	GCMS Method ^{b,*}	HPLC Method ^{c,*}	COLOR Method ^d
Hexachloroethane	67721	5	1	--	--
Indeno(1,2,3-cd)pyrene	193395	--	10	0.05	--
Isophorone	78591	10	1	--	--
2-methyl-4,6-dinitrophenol	534521	10	5	--	--
3-methyl-4-chlorophenol	59507	5	1	--	--
N-nitrosodi-n-propylamine	621647	10	5	--	--
N-nitrosodimethylamine	62759	10	5	--	--
N-nitrosodiphenylamine	86306	10	1	--	--
Nitrobenzene	98953	10	1	--	--
2-Nitrophenol	88755	--	10	--	--
4-Nitrophenol	100027	5	10	--	--
Pentachlorophenol	87865	1	5	--	--
Phenanthrene	85018	--	5	0.05	--
Phenol	108952	1	1	--	50
Pyrene	129000	--	10	0.05	--
2,4,6-Trichlorophenol	88062	10	10	--	--

Table II-2 Notes:

- a) GC Method = Gas Chromatography
- b) GCMS Method = Gas Chromatography / Mass Spectrometry
- c) HPLC Method = High Pressure Liquid Chromatography
- d) COLOR Method= Colorimetric

* To determine the lowest standard concentration in an instrument calibration curve for this technique, multiply the given ML by 1000 (see Chapter III, "Use of Minimum* Levels").

Inorganic Substances	CAS Number	COLOR Method ^a	DCP Method ^b	FAA Method ^c	GFAA Method ^d	HYDRIDE Method ^e	ICP Method ^f	ICPMS Method ^g	SPGFAA Method ^h	CVAA Method ⁱ
Antimony	7440360	--	1000.	10.	5.	0.5	50.	0.5	5.	--
Arsenic	7440382	20.	1000.	--	2.	1.	10.	2.	2.	--
Beryllium	7440417	--	1000.	20.	0.5	--	2.	0.5	1.	--
Cadmium	7440439	--	1000.	10.	0.5	--	10.	0.2	0.5	--
Chromium (total)	--	--	1000.	50.	2.	--	10.	0.5	1.	--
Chromium (VI)	18540299	10.	--	5.	--	--	--	--	--	--
Copper	7440508	--	1000.	20.	5.	--	10.	0.5	2.	--
Cyanide	57125	5.	--	--	--	--	--	--	--	--
Lead	7439921	--	10000.	20.	5.	--	5.	0.5	2.	--
Mercury	7439976	--	--	--	--	--	--	0.5	--	0.2
Nickel	7440020	--	1000.	50.	5.	--	20.	1.	5.	--
Selenium	7782492	--	1000.	--	5.	1.	10.	2.	5.	--
Silver	7440224	--	1000.	10.	1.	--	10.	0.2	2.	--
Thallium	7440280	--	1000.	10.	2.	--	10.	1.	5.	--
Zinc	7440666	--	1000.	20.	--	--	20.	1.	10.	--

Table II-3 Notes

- a) COLOR Method = Colorimetric
- b) DCP Method = Direct Current Plasma
- c) FAA Method = Flame Atomic Absorption
- d) GFAA Method = Graphite Furnace Atomic Absorption
- e) HYDRIDE Method = Gaseous Hydride Atomic Absorption
- f) ICP Method = Inductively Coupled Plasma
- g) ICPMS Method = Inductively Coupled Plasma / Mass Spectrometry
- h) SPGFAA Method = Stabilized Platform Graphite Furnace Atomic Absorption (i.e., US EPA 200.9)
- i) CVAA Method = Cold Vapor Atomic Absorption

* To determine the lowest standard concentration in an instrument calibration curve for these techniques, use the given ML (see Chapter III, "Use of Minimum* Levels").

**TABLE II-4
MINIMUM* LEVELS – PESTICIDES AND PCBs**

Pesticides – PCB's	CAS Number	Minimum* Level (ug/L)
		GC Method ^{a,*}
Aldrin	309002	0.005
Chlordane	57749	0.1
4,4'-DDD	72548	0.05
4,4'-DDE	72559	0.05
4,4'-DDT	50293	0.01
Dieldrin	60571	0.01
a-Endosulfan	959988	0.02
b-Endosulfan	33213659	0.01
Endosulfan Sulfate	1031078	0.05
Endrin	72208	0.01
Heptachlor	76448	0.01
Heptachlor Epoxide	1024573	0.01
a-Hexachlorocyclohexane	319846	0.01
b-Hexachlorocyclohexane	319857	0.005
d-Hexachlorocyclohexane	319868	0.005
g-Hexachlorocyclohexane (Lindane)	58899	0.02
PCB 1016	--	0.5
PCB 1221	--	0.5
PCB 1232	--	0.5
PCB 1242	--	0.5
PCB 1248	--	0.5
PCB 1254	--	0.5
PCB 1260	--	0.5
Toxaphene	8001352	0.5

Table II-4 Notes

a) GC Method = Gas Chromatography

* To determine the lowest standard concentration in an instrument calibration curve for this technique, multiply the given ML by 100 (see Chapter III, "Use of Minimum* Levels").